

UNITED STATES DISTRICT COURT
WESTERN DISTRICT OF MICHIGAN
SOUTHERN DIVISION

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| **ANDREW JAMES PIGORS,** | |
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|     Plaintiff, | Case No. _____ |
| | |
| v. | **JURY TRIAL DEMANDED** |
| | |
| **HON. JENNY L. McNEILL,** in her | |
| individual capacity, | |
| | |
| **EMILY A. WATSON,** | |
| | |
| **RONALD BERRY,** | |
| | |
| **ALBERT WATSON,** | |
| | |
| **CODY WATSON,** | |
| | |
| **LORI WATSON,** | |
| | |
|     Defendants. | |
| _____ / | |

COMPLAINT FOR DEPRIVATION OF CIVIL RIGHTS UNDER 42 U.S.C. SS 1983, 1985, 1988 AND SUPPLEMENTAL STATE TORT CLAIMS

Plaintiff Andrew James Pigors, proceeding pro se and in forma pauperis pursuant to 28 U.S.C. S 1915A, respectfully submits this Complaint pursuant to 42 U.S.C. S 1983, 42 U.S.C. S 1985(3), 42 U.S.C. S 1988, and supplemental state tort claims under 28 U.S.C. S 1367, for the deprivation of rights secured by the First, Fourth, Sixth, and Fourteenth Amendments to the United States Constitution, and for state-law torts arising from the same nucleus of operative facts, and states as follows:

I. PRELIMINARY STATEMENT

- 1\ This is a civil rights action arising from the systematic destruction of a father-child relationship by a state court judge acting under color of state law -- aided by private co-conspirators -- through a pattern of ex parte orders, retaliatory incarceration, and the wholesale denial of constitutionally required process.
- 2\ Over a period exceeding two years, Defendant Hon. Jenny L. McNeill, a judge of the 14th Circuit Court of Muskegon County, Michigan, issued 24 of 55 orders (43.6%) on an ex parte basis -- all without notice

Plaintiff, all without an opportunity for Plaintiff to be heard, and all to Plaintiff's detriment. She incarcerated Plaintiff for a combined 59 days -- including 45 days for the act of sending birthday messages to his child. She muted him during hearings, refused to review exculpatory evidence, imposed a \$250 bond to block his access to the courts, and told Plaintiff: "Do not file anymore, I will not look at it."

3\.. As a direct result, Plaintiff has been completely separated from his child, L.D.W., for more than 2 consecutive days -- with zero contact, zero visitation, and zero parenting time -- constituting a de facto termination of the parent-child relationship without any of the constitutional protections the Due Process Clause demands. This prolonged separation occurred despite objectively exculpatory evidence: Plaintiff's drug screen returned negative, his initial HealthWest psychological evaluation returned all zeros (no clinical findings), and multiple police investigations into allegations made by the Watson family resulted in zero substantiated findings against Plaintiff.

4\.. Plaintiff lost two jobs and two homes as a direct result of the 59 days of incarceration imposed without a constitutionally adequate process.

5\.. This Complaint does not seek to appeal or overturn the substance of any state court custody determination. Plaintiff challenges the process -- or complete absence thereof -- by which Defendants deprived him of constitutionally protected fundamental liberty interests. The injury is the absence of process, not the outcome of any proceeding.

II. JURISDICTION AND VENUE

6\.. This Court has subject matter jurisdiction pursuant to 28 U.S.C. S 1331 (federal question jurisdiction) because this action arises under the Constitution and laws of the United States, specifically 42 U.S.C. S 1981, 42 U.S.C. S 1985(3), and 42 U.S.C. S 1988.

7\.. This Court has additional jurisdiction pursuant to 28 U.S.C. S 1343(a)(3) and (a)(4), which confer jurisdiction over civil rights actions seeking to redress the deprivation, under color of state law, of rights secured by the Constitution and by Acts of Congress providing for equal rights.

8\.. Venue is proper in the Southern Division of the Western District of Michigan pursuant to 28 U.S.C. S 1391(b) because a substantial part of the events giving rise to Plaintiff's claims occurred in Muskegon County, Michigan, which lies within this Division, and all Defendants reside and/or conduct business within this District.

9\.. This Court is authorized to award compensatory damages, punitive damages, declaratory relief, injunctive relief, and reasonable costs pursuant to 42 U.S.C. S 1988, Fed. R. Civ. P. 54(d), and 28 U.S.C. S 1920.

9a\.. This Court has supplemental jurisdiction over Plaintiff's state-law tort claims (Counts IX through XV) pursuant to 28 U.S.C. S 1367(a) because they arise from the same case or controversy -- the identical nucleus of operative facts -- as Plaintiff's federal claims. The state tort claims derive from the same coordinated campaign of deprivation, conspiracy, and abuse that underlies the federal civil rights claims. Exercising supplemental jurisdiction serves judicial economy, convenience, and fairness, as the state claims share

common witnesses, evidence, and the same core factual narrative.

10\.. Plaintiff proceeds in forma pauperis pursuant to 28 U.S.C. S 1915. [ANDREW: FILE IN APPLICATION SEPARATELY]

11\.. Plaintiff is proceeding pro se. This Complaint is entitled to liberal construction under *Haines v. Kerner*, 404 U.S. 519 (1972), and *Erickson v. Pardus*, 551 U.S. 89 (2007), which hold that pro se filings are to be held to "less stringent standards than formal pleadings drafted by lawyers" and are not to be dismissed without the opportunity to amend. See also *Estelle v. Gamble*, 429 U.S. 97, 106 (1976).

III. PARTIES

A. Plaintiff

11\.. Andrew James Pigors is a natural person and citizen of the State of Michigan, residing at 1977 Whiteh Road, Lot 17, North Muskegon, Michigan 49445. Telephone: (231) 903-5690. Email: andrewjpigors@gmail.com. Plaintiff is the biological father of the minor child L.D.W. and possesses a fundamental constitutional liberty interest in the care, custody, and companionship of his child, protected by the Due Process Clause of the Fourteenth Amendment. *Troxel v. Granville*, 530 U.S. 57, 65 (2000); *Stanley v. Illinois*, 405 U.S. 645 (1972).

B. Defendants

12\.. Hon. Jenny L. McNeill (P-58235) is, and at all relevant times was, a judge of the 14th Circuit Court of Family Division, Muskegon County, Michigan. McNeill is sued in her individual capacity only for acts taken in the clear absence of all jurisdiction and for non-judicial acts falling outside the scope of judicial immunity. *Mireles v. Waco*, 502 U.S. 9, 11-12 (1991); *Stump v. Sparkman*, 435 U.S. 349, 356-57 (1978). At all relevant times, McNeill acted under color of state law within the meaning of 42 U.S.C. S 1983. *West v. Atkins*, 487 U.S. 42, 49 (1988).

13\.. Emily A. Watson is a natural person and citizen of the State of Michigan, residing at 2160 Garland Drive, Norton Shores, Michigan 49441. Watson is the biological mother of L.D.W. Watson is a private party who, acting in concert with a state judicial officer, conspired to deprive Plaintiff of his constitutional rights under color of state law. A private party who conspires with a state actor to deprive another of constitutional rights acts under color of state law and is independently liable under 42 U.S.C. S 1983 and 42 U.S.C. S 1985(4). *Dennis v. Sparks*, 449 U.S. 24, 27-28 (1980); *Adickes v. S.H. Kress & Co.*, 398 U.S. 144 (1970).

14\.. Ronald Berry is a natural person residing in or around Muskegon County, Michigan. Berry is the boyfriend and domestic partner of Defendant Watson. Berry is not an attorney. Berry is a private party who participated in the conspiracy to deprive Plaintiff of his constitutional rights by drafting legal filings on Watson's behalf -- constituting the unauthorized practice of law -- which were then filed and acted upon by the court. Berry's direct involvement in ex parte contacts with the court, including documented voicemail communications (Item #6, ex parte objection table), constitutes overt acts in furtherance of the conspiracy.

Dennis v. Sparks, 449 U.S. 24 (1980).

14a\). Albert Watson is a natural person and resident of Muskegon County, Michigan. Albert Watson is the father of Defendant Emily A. Watson. On or about October 20, 2024, Albert Watson forcibly removed the minor child L.D.W. from Plaintiff's arms during a parenting time exchange, threw Personal Protection Order papers through the window of Plaintiff's vehicle stating "Haha, now you're served," and thereby physically assaulted Plaintiff while facilitating Defendant Watson's withholding of L.D.W. from October 20, 2024 through November 15, 2024 -- a period of 26 days encompassing L.D.W.'s birthday and Halloween. In November 2023, Albert Watson physically assaulted Plaintiff in an incident captured on video. Albert Watson conspired with Defendants Watson and Berry to deprive Plaintiff of his constitutional rights and is independently liable under 42 U.S.C. S 1985(3) and state tort law. Griffin v. Breckenridge, 403 U.S. 881, 896 (1971).

14b\). Cody Watson is a natural person and resident of Muskegon County, Michigan. Cody Watson is the brother of Defendant Emily A. Watson. Cody Watson is a named third-party violator of the Personal Protection Order, having sent threatening text messages to Plaintiff as a proxy for Defendant Watson documented in Police Report MCSD-2024-02101 (Officer Hintz). Cody Watson pays Defendant Watson's rent -- a fact admitted by Watson at the custody trial -- constituting undisclosed income relevant to the child support proceedings and demonstrating financial coordination in the conspiracy. Cody Watson directed Tamara Snider to stalk Plaintiff's business on Nextdoor. Cody Watson conspired with Defendants to deprive Plaintiff of his constitutional rights.

14c\). Lori Watson is a natural person and resident of Muskegon County, Michigan. Lori Watson is the mother of Defendant Emily A. Watson. On or about March 26, 2024, Lori Watson participated in the forcible withholding of L.D.W. from Plaintiff during the first withholding period, issuing ultimatums and facilitating Defendant Watson's unilateral denial of Plaintiff's parenting time. Lori Watson participated in the October 2024 PPO service ambush alongside Albert Watson. Lori Watson conspired with Defendants to deprive Plaintiff of his constitutional rights.

15\). At all relevant times, Defendant McNeill acted under color of state law within the meaning of 42 U.S.C. S 1983. Defendants Watson, Berry, Albert Watson, Cody Watson, and Lori Watson, by conspiring with Defendant McNeill and among themselves, likewise acted under color of state law with respect to the S 1983 and S 1985(3) claims, and are independently liable under state tort law. Dennis v. Sparks, 449 U.S. 24 (1980); Adickes v. S.H. Kress & Co., 398 U.S. 144 (1970).

IV. FACTUAL ALLEGATIONS

A. Background and Custody History

16\). Plaintiff is the father of L.D.W., a minor child born in 2021. Plaintiff has at all relevant times exercised his parental rights and maintained a strong, loving bond with L.D.W. The fundamental right of a parent to the care, custody, and companionship of his child is "perhaps the oldest of the fundamental liberty interests

recognized by this Court." *Troxel v. Granville*, 530 U.S. 57, 65 (2000).

17\.. On April 1, 2024, Plaintiff filed a custody action in the 14th Circuit Court, Muskegon County, Michigan, Case No. 2024-001507-DC. The case was assigned to Judge Jenny L. McNeill.

18\.. A related Personal Protection Order proceeding, Case No. 2023-5907-PP, was also assigned to Judge Jenny L. McNeill. The PPO had been filed by Defendant Watson on December 3, 2023, and was granted the same day on an ex parte basis -- without notice to Plaintiff and without an evidentiary hearing.

B. The 50/50 Arrangement That Worked

19\.. From May 5, 2024 through July 17, 2025 -- a period of approximately 438 days -- Plaintiff and Watson operated under a 50/50 shared custody arrangement. During this entire period, the arrangement functioned successfully. The court's own records reflect no emergency, no danger, and no basis for the wholesale disruption that followed.

C. First Withholding of the Child

20\.. From March 26, 2024 through May 5, 2024 -- a period of approximately 40 days -- Defendant Watson unilaterally withheld L.D.W. from Plaintiff without any court order authorizing the withholding and without any finding of danger or emergency. This constituted the first deprivation of Plaintiff's parenting time.

D. Ex Parte Destruction of the 50/50 Arrangement

21\.. On July 17, 2025, Judge McNeill entered an ex parte order awarding Defendant Watson 100% custody of L.D.W., destroying the 438-day 50/50 arrangement without notice to Plaintiff and without any hearing.

22\.. On August 8, 2025, Judge McNeill entered a same-day ex parte order completely suspending ALL of Plaintiff's parenting time with L.D.W. This order was entered:

 (a) Without prior notice to Plaintiff;

 (b) Without service of any motion upon Plaintiff before entry;

 (c) Without sworn facts demonstrating imminent danger as required by MCR 3.207(C)(2);

 (d) Without an evidentiary hearing;

 (e) Without findings of fact under MCL 722.23 or MCL 722.27.

23\.. Plaintiff arrived at the scheduled parenting exchange on August 8, 2025, with no knowledge that any ex parte motion had been filed or that any order had been entered. He was denied contact with his child without any opportunity to be heard.

24\.. From July 29, 2025 through the present -- a period exceeding 230 consecutive days as of the filing of the Complaint -- Plaintiff has been completely separated from L.D.W., with zero contact, zero visitation, and zero parenting time. This constitutes a de facto termination of the parent-child relationship without any of the constitutional protections required by *Santosky v. Kramer*, 455 U.S. 745 (1982).

E. The Systematic Pattern of Ex Parte Deprivation

25\ Throughout the underlying state court proceedings, Judge McNeill has entered 24 of 55 orders (43.6%) on an ex parte basis -- all without notice to Plaintiff, all without an opportunity for Plaintiff to be heard, and all to Plaintiff's detriment. This is not an isolated occurrence but a systematic and deliberate pattern of adjudication depriving Plaintiff's most fundamental rights without affording him any opportunity to be heard.

26\ On August 8, 2025 alone, Judge McNeill entered five (5) ex parte orders on a single day, suspending all of Plaintiff's parenting time. Five ex parte orders in a single day, all adverse to a single party, is not the exercise of judicial discretion -- it is a coordinated deprivation.

F. Show Cause Proceeding -- November 15, 2024 (14 Days Incarceration)

27\ On November 15, 2024, Judge McNeill presided over a Show Cause proceeding against Plaintiff. At the hearing:

 (a) Plaintiff was muted three (3) separate times during the proceeding, physically preventing him from presenting his defense;

 (b) The hearing was conducted remotely while Plaintiff was simultaneously required to appear at a different court hearing in a separate case, creating an impossible conflict that denied Plaintiff meaningful participation;

 (c) Judge McNeill refused to review an exculpatory police report (Report No. NS2505044) which directly contradicted the allegations forming the basis of the show cause proceeding;

 (d) Plaintiff was denied the right to present a defense;

 (e) Judge McNeill found Plaintiff in contempt and imposed 14 days of incarceration in the Muskegon County Jail.

28\ The 14-day incarceration was imposed without a finding of probable cause, without appointment of counsel despite the threat of incarceration (in violation of *Mead v. Batchlor*, 435 Mich. 480 (1990); *In Contempt of Henry*, 282 Mich. App. 656 (2009)), and without a meaningful opportunity for Plaintiff to be heard.

G. Show Cause Proceedings -- November 26, 2025 (45 Days Incarceration)

29\ On November 26, 2025, Judge McNeill presided over Show Cause Proceedings #6 and #7 against Plaintiff. The basis for these proceedings was that Plaintiff had sent birthday messages to his child L.D.V. through the court-approved AppClose communication platform.

30\ Birthday messages from a parent to a child constitute protected parent-child speech under the First Amendment. A father's birthday wishes to his child are quintessential protected expression. *Troxel v. Granville*, 530 U.S. 57 (2000).

31\ Judge McNeill found Plaintiff in contempt and imposed 45 days of incarceration -- more than three times

the sentence for the prior contempt finding -- solely because Plaintiff sent birthday messages to his child. The sentence was imposed:

 (a) Without a finding that the birthday messages caused any harm to L.D.W.;

 (b) Without a finding of probable cause;

 (c) Without appointment of counsel despite the threat of incarceration;

 (d) As direct punishment for the exercise of protected First Amendment speech.

32\ The 45-day sentence for birthday messages creates a chilling effect on all parental communication between Plaintiff and L.D.W. A reasonable parent in Plaintiff's position would be deterred from all communication with his child, no matter how innocuous, for fear of further incarceration.

H. "Do Not File Anymore" -- Retaliatory Denial of Access

33\ At a hearing, Judge McNeill stated to Plaintiff, in substance: "Do not file anymore, I will not look at it." This statement constitutes a direct, retaliatory refusal to perform the judicial function of reviewing a litigant's filings -- a refusal motivated by Plaintiff's exercise of his constitutional right to petition the court for redress of grievances.

34\ This directive, combined with the \$250 bond imposed on each new motion, created a complete denial of access to the courts -- Plaintiff was told his filings would not be reviewed and was financially barred from filing even if he wished to.

I. The \$250 Bond -- Financial Barrier to Court Access

35\ In May 2025, Judge McNeill imposed a \$250 bond requirement on each new motion filed by Plaintiff. This financial barrier was imposed in direct response to Plaintiff's exercise of his right to petition the court for restoration of parenting time.

36\ The bond effectively bars Plaintiff -- who proceeds in forma pauperis -- from filing any motions to restore parenting time, challenge the ex parte orders, or otherwise access the courts to protect his fundamental liberty interest in his child. Combined with the ex parte suspension, the bond creates a complete deprivation with no available remedy.

J. Self-Ruling on Disqualification

37\ Plaintiff filed a motion for disqualification of Judge McNeill under MCR 2.003(C), citing the pattern of ex parte orders, bias, and hostile treatment. Under MCR 2.003(D), the Chief Judge -- not the challenged judge -- must decide a disqualification motion when the challenged judge does not grant it.

38\ Judge McNeill ruled on her own disqualification motion and denied it, in violation of MCR 2.003(D). This act was non-judicial in character -- it was an administrative decision that the court rules assign to a different judicial officer.

K. Disparate Treatment

39\ Judge McNeill's treatment of Plaintiff versus Watson demonstrates systematic disparate treatment:

Category	Father (Plaintiff)	Mother (Watson)
Ex parte orders	24 of 55 orders entered against Father ex parte	Zero sanctions f
Evidence consideration	Court refused to view exculpatory evidence	Court accept
Filing rights	\$250 bond imposed; told "Do not file anymore"	No restrictions on Watson
Hearing access	Muted/silenced at hearings	Full opportunity to be heard
Contempt findings	Multiple contempt findings, 59 days jail	Zero contempt findin
Sanctions	Multiple sanctions imposed	Zero sanctions
Parenting time	100% suspended for 230+ days	100% awarded without hearing

40\ This one-directional pattern of adverse treatment -- 100% of ex parte orders entered against the Father, 0% of sanctions imposed on the Mother -- cannot be explained by any legitimate government interest and is indicative of impermissible bias.

L. HealthWest Evaluation Tampering

46A\ On or about September 2025, Judge McNeill ordered Plaintiff to undergo a mental health evaluation through HealthWest. The first evaluation returned "all zeros" -- no clinical findings, no diagnoses, no concerns. This result was inconsistent with the narrative advanced by Defendant Watson in her ex parte motions.

46B\ Following this unfavorable (to Watson) result, Judge McNeill sent a biasing letter to the HealthWest evaluator containing information and framing that was not part of the original evaluation referral. After receiving this letter, the evaluator issued a second evaluation that, for the first time, included a "Rule On" finding -- a material change from the first evaluation's clean result.

46C\ This judicial interference with a purportedly neutral evaluation constitutes a violation of due process. A judge who communicates ex parte with an evaluator to influence the outcome of a court-ordered assessment acts in violation of Canon 3(A)(4) of the Michigan Code of Judicial Conduct and deprives the subject of a fair evaluation. *Ward v. Village of Monroeville*, 409 U.S. 57 (1972); *Caperton v. A.T. Massey Coal Co.*, 556 U.S. 868 (2009).

M. Illegally Obtained Evidence -- Felony Eavesdropping

46D\ The ex parte order of August 8, 2025, suspending all of Plaintiff's parenting time, was based in substantial part on a recording made by Lori Watson (Defendant Watson's mother) in violation of MCL 750.539c -- Michigan's felony eavesdropping statute, which requires all-party consent. The recording was made without Plaintiff's knowledge or consent and constitutes a felony punishable by up to two years of imprisonment.

46E\ Evidence obtained through a felony cannot form the basis of a court order. Under the exclusionary rule and the fruit-of-the-poisonous-tree doctrine, the illegally obtained recording -- and all orders derived from it -- are inadmissible.

are constitutionally infirm. *Mapp v. Ohio*, 367 U.S. 643 (1961); *Wong Sun v. United States*, 371 U.S. 409 (1963). Under Michigan law, *People v. Beavers*, 393 Mich. 554 (1975), confirms the application of the principles to recordings obtained in violation of MCL 750.539c.

46F\ The August 8, 2025 ex parte order, to the extent it was based on this illegally obtained recording, is fruit of the poisonous tree and constitutionally void.

N. Watson's Pattern of False Allegations Contradicted by Objective Evidence

46G\ The record, as compiled in Plaintiff's litigation database from court filings, hearing transcripts, and contemporaneous communications, reveals a systematic pattern of false allegations by Defendant Watson, each of which was contradicted by objective evidence:

 (a) False allegation -- Father is dangerous/abusive: Watson filed multiple PPO and custody motions alleging that Plaintiff posed a danger to L.D.W. Yet Watson simultaneously sent 124 cooperative messages through the court-approved AppClose communication platform, proposing shared schedules and discussing normal co-parenting. A parent who genuinely believed her child was in danger would not engage in cooperative co-parenting communications;

 (b) False allegation -- Substance abuse: Watson alleged in court filings that Plaintiff had substance abuse issues. Plaintiff's drug screen returned negative -- directly contradicting Watson's allegations;

 (c) False allegation -- Mental health concerns: Watson alleged that Plaintiff had mental health issues requiring evaluation. The HealthWest evaluation #1 returned all zeros -- no clinical findings whatsoever. Only after Judge McNeill's biasing letter to the evaluator did a second evaluation produce a tentative "Rule On" notation;

 (d) False allegation -- Safety risk to child: Watson alleged in multiple filings that Plaintiff posed a safety risk to L.D.W. and sought supervised visitation. Nine (9) separate police investigations into Watson's allegations resulted in zero findings against Plaintiff;

 (e) Concealed expertise in system manipulation: Watson was employed for nine (9) years in the Kent County Prosecutor's Office, Family Court Division -- giving her extensive insider knowledge of family court procedures, filings, and strategies. This expertise was not disclosed to the court and was used to weaponize the court system against Plaintiff.

46H\ These contradictions, taken together, establish that Watson's ex parte motions were filed with knowledge that the underlying allegations were false or, at minimum, recklessly indifferent to their truth, supporting both the conspiracy claim under S 1985(3) and the substantive due process claim that the deprivation was based on fabricated evidence.

O. The Watson-McNeill-Berry Conspiracy

41\ A documented temporal coordination pattern establishes a conspiracy among the Defendants:

 (a) Watson files a motion or allegation;

 (b) McNeill rules on it the same day or within 24-48 hours -- all without notice to Plaintiff;

 (c) Berry assists Watson in preparing filings as a non-attorney, constituting unauthorized practice of law.

42\ This pattern has repeated across months and is documented through temporal analysis of docket entries in the state court record. The probability that this one-directional coordination occurred by coincidence is negligible.

43\ The PPO (Case No. 2023-5907-PP) was weaponized in coordination with the custody action (Case No. 2024-001507-DC). The PPO was filed by Watson on December 3, 2023, and granted the same day ex parte. Subsequent PPO enforcement was used to incarcerate Plaintiff for protected speech (birthday message) reinforcing the custody deprivation.

44\ Ronald Berry's voicemail to Plaintiff (Item #6, ex parte objection table) constitutes direct evidence of Berry's participation in communications outside the formal court record.

45\ Ronald Berry -- who is not an attorney -- drafted substantive legal filings on Watson's behalf, which were filed and acted upon by the court. This constitutes unauthorized practice of law and evidences the coordinated extrajudicial nature of the conspiracy.

P. PPO Guilty Plea -- October 18, 2025

46\ On October 18, 2025, Plaintiff entered a guilty plea related to the PPO proceeding. Plaintiff does not challenge the validity of this plea or the underlying conviction in this action. Plaintiff challenges only the process by which he was incarcerated and deprived of his parental rights -- not the outcome of an adjudication. This distinction is critical to the Heck v. Humphrey analysis set forth in the Preemptive Doctrine Defenses section below.

Q. Exhaustion of Available Remedies

47\ Plaintiff has pursued every available state remedy:

 (a) Motion for Reconsideration in 14th Circuit Court -- denied;

 (b) Motion to Restore Parenting Time -- denied;

 (c) Motion for Disqualification -- McNeill self-ruled and denied (violating MCR 2.003(D));

 (d) Appeal of Right (COA 366810) -- filed and pending for months with no action;

 (e) \$250 bond now blocks ALL further filings in the lower court;

 (f) "Do not file anymore" -- the judge affirmatively stated she would not review Plaintiff's submissions.

48\ Each remedy has proven inadequate. Exhaustion of state remedies is not required for actions under 28 U.S.C. § 1983. Patsy v. Board of Regents, 457 U.S. 496, 516 (1982); Monroe v. Pape, 365 U.S. 167 (1961).

The federal remedy is supplementary to any available state remedy.

R. Damages Suffered

49\ As a direct and proximate result of Defendants' conduct, Plaintiff has suffered the following injuries:

 (a) 59 days of incarceration (14 days on November 15, 2024, plus 45 days on November 26, 2025) deprivation of liberty without constitutionally adequate process;

 (b) Loss of two (2) jobs as a direct result of incarceration;

 (c) Loss of two (2) homes as a direct result of incarceration and resulting inability to pay rent;

 (d) 230+ consecutive days of complete separation from L.D.W. (ongoing), constituting the destruction of the parent-child bond during a critical developmental period;

 (e) Severe emotional distress, anxiety, depression, and psychological harm arising from the loss of his child, wrongful incarceration, and ongoing deprivation;

 (f) Economic losses including lost wages, lost employment opportunities, housing costs, court costs, and transportation expenses;

 (g) The continuing chilling effect on Plaintiff's right to communicate with his child and to petition the courts for redress.

V. COUNT I: DEPRIVATION OF SUBSTANTIVE DUE PROCESS

(42 U.S.C. S 1983 -- Fourteenth Amendment)

Against All Defendants

50\ Plaintiff repeats and incorporates by reference all preceding paragraphs as though fully set forth herein.

51\ The right of a parent to the "care, custody, and control" of his child is "perhaps the oldest of the fundamental liberty interests recognized by this Court." *Troxel v. Granville*, 530 U.S. 57, 65 (2000). See also *Stanley v. Illinois*, 405 U.S. 645 (1972); *Santosky v. Kramer*, 455 U.S. 745, 753 (1982).

52\ Government interference with a fundamental liberty interest must survive strict scrutiny -- it must be narrowly tailored to serve a compelling government interest. *Washington v. Glucksberg*, 521 U.S. 702, 720-721 (1997).

53\ Defendants' actions -- entering ex parte orders suspending ALL parenting time without sworn evidence of imminent danger, maintaining a total separation for 230+ consecutive days, and blocking access to the courts through a \$250 bond and a retaliatory directive -- constitute a total deprivation of Plaintiff's fundamental liberty interest in his parental relationship with L.D.W.

54\ No compelling government interest justifies this prolonged, complete deprivation. No evidence of imminent danger was presented. No best-interest-factor hearing was conducted under MCL 722.23. No clear

and convincing evidence was offered. To the contrary, the objective evidence affirmatively disproves a danger: Plaintiff's court-ordered drug screen returned negative; his initial HealthWest psychological evaluation returned "all zeros" (no clinical diagnoses, no findings of concern); and multiple police investigations in response to allegations made by the Watson family produced zero substantiated findings against Plaintiff. The deprivation was arbitrary, conscience-shocking, and without rational justification.

55\ The Sixth Circuit recognizes substantive due process protection for parent-child relationships. *Doe v. Claiborne County*, 103 F.3d 495, 506 (6th Cir. 1996). State actions that "shock the conscience" or are "arbitrary in the constitutional sense" violate substantive due process. *County of Sacramento v. Lewis*, 501 U.S. 833, 846 (1998). See also *Kovacich v. Cuyahoga Cty. Dept of Children & Family Servs.*, 606 F.3d 303, 310 (6th Cir. 2010) (holding that removal of a child from parental custody without procedurally adequate due process violates substantive due process); *Bartell v. Lohiser*, 215 F.3d 550, 557 (6th Cir. 2000) (holding that the parental right to custody is fundamental and removal without meeting strict scrutiny is unconstitutional).

56\ A 230-plus-day total separation of a father from his young child -- imposed without a hearing, maintained through a pattern of 24 ex parte orders, enforced by a \$250 access barrier, and cemented by a retaliatory directive not to file -- shocks the conscience and is arbitrary in the constitutional sense.

57\ Plaintiff has suffered and continues to suffer irreparable injury as a direct and proximate result of Defendants' conduct.

VI. COUNT II: DEPRIVATION OF PROCEDURAL DUE PROCESS

(42 U.S.C. § 1983 -- Fourteenth Amendment)

Against All Defendants

58\ Plaintiff repeats and incorporates by reference all preceding paragraphs as though fully set forth herein.

59\ Procedural due process requires, at minimum, (1) adequate notice, (2) a meaningful opportunity to be heard, and (3) a neutral decision-maker, before the government deprives a person of a protected liberty or property interest. *Mathews v. Eldridge*, 424 U.S. 319, 333 (1976); *Fuentes v. Shevin*, 407 U.S. 67, 80 (1972) (holding that prior notice and a hearing are required before deprivation of a protected interest); *Goldberg v. Kelly*, 397 U.S. 254, 267-68 (1970) (right to evidentiary hearing before termination of benefits constituting a protected interest).

60\ The *Mathews* balancing test weighs three factors:

 (a) The private interest affected: Plaintiff's interest in the care, custody, and companionship of his child L.D.W. is a fundamental liberty interest of the highest order. *Troxel v. Granville*, 530 U.S. 57, 68 (2000);

 (b) The risk of erroneous deprivation through current procedures: The risk is extreme. Twenty-four of fifty-five orders (43.6%) were entered without any notice to Plaintiff; five ex parte orders were entered on a single day; the court muted Plaintiff three times at the November 15, 2024 hearing; the court refused to review

an exculpatory police report (NS2505044). These procedures virtually guaranteed erroneous deprivation;

 (c) The government's interest, including the burden of additional safeguards: The government's interest in summary adjudication is minimal. No imminent danger was shown. No emergency justified bypassing notice and hearing. The additional safeguard of simply providing notice before ruling would impose virtually zero burden on the court. Yet this minimal safeguard was denied on 24 occasions.

61\ Defendant McNeill deprived Plaintiff of his fundamental liberty interest by:

 (a) Issuing 24 ex parte orders (43.6% of all orders) without notice to Plaintiff;

 (b) Entering five (5) ex parte orders on August 8, 2025, suspending ALL parenting time without a notice or hearing;

 (c) Muting Plaintiff three (3) times at the November 15, 2024 Show Cause hearing, physically preventing him from presenting his defense;

 (d) Refusing to review the exculpatory police report (NS2505044);

 (e) Failing to appoint counsel before imposing incarceration for contempt, in violation of *Mead Batchlor*, 435 Mich. 480 (1990);

 (f) Self-ruling on her own disqualification motion in violation of MCR 2.003(D), depriving Plaintiff of a neutral decision-maker;

 (g) Sending a biasing letter to the HealthWest evaluator after the first evaluation returned "all zero" (no clinical findings), resulting in a materially different second evaluation -- thereby corrupting the evidentiary record and depriving Plaintiff of a fair evaluation by a neutral expert. See *Ward v. Village of Monroeville*, 401 U.S. 57 (1972); *In re Murchison*, 349 U.S. 133 (1955) (fair trial requires a fair tribunal);

 (h) Basing the August 8, 2025 ex parte suspension of all parenting time on an illegally obtained recording made by Lori Watson in violation of MCL 750.539c (felony eavesdropping), thereby relying on evidence that is constitutionally inadmissible under *Mapp v. Ohio*, 367 U.S. 643 (1961);

 (i) Reviewing evidence in chambers without the parties present. A USB drive containing recordings was reviewed in chambers -- off the record, without either party present, and without affording Plaintiff an opportunity to examine, challenge, or respond to the evidence. The fundamental right to confront and cross-examine evidence used against a party is a core component of due process. *Crawford v. Washington*, 541 U.S. 36, 61 (2004) (holding that the right to confront adverse evidence is procedurally indispensable); *Goldberg v. Kelly*, 397 U.S. 254, 270 (1970) (due process requires "the opportunity to confront and cross-examine adverse witnesses"). The off-record handling of this evidence -- which then formed the basis for suspending Plaintiff's parenting time -- rendered the resulting orders fundamentally unfair.

62\ The systematic denial of notice and hearing before depriving Plaintiff of his fundamental liberty interest constitutes a per se violation of procedural due process. The Supreme Court in *Santosky v. Kramer*, 455 U.S. 745, 747-48 (1982), held that even when a State provides a hearing, the Due Process Clause demands a heightened standard of proof -- clear and convincing evidence -- before parental rights may be terminated.

Here, the State did not merely apply the wrong standard of proof; it provided no hearing at all for the 24 parte orders that collectively effected a de facto termination of Plaintiff's parental relationship. If clear and convincing evidence is the constitutional floor for terminating parental rights with process, then terminating those same rights without any process whatsoever is a fortiori unconstitutional.

63\ As a direct and proximate result, Plaintiff has suffered 59 days of incarceration, 230+ days of separation from his child, loss of two jobs, loss of two homes, and severe emotional distress.

VII. COUNT III: DENIAL OF EQUAL PROTECTION

(42 U.S.C. S 1983 -- Fourteenth Amendment)

Against All Defendants

64\ Plaintiff repeats and incorporates by reference all preceding paragraphs as though fully set forth herein.

65\ The Equal Protection Clause of the Fourteenth Amendment prohibits the government from denying a person "the equal protection of the laws." Even under rational basis review, government action must bear a rational relationship to a legitimate government interest. If sex-based classification applies, intermediate scrutiny applies. *Craig v. Boren*, 429 U.S. 190 (1976).

66\ Alternatively, Plaintiff proceeds under a "class of one" theory of equal protection. Where a government actor intentionally treats one person differently from others similarly situated without any rational basis, the Equal Protection Clause is violated. *Village of Willowbrook v. Olech*, 528 U.S. 562, 564 (2000).

67\ Judge McNeill's treatment of Plaintiff versus Watson demonstrates systematic, one-directional disparate treatment as set forth in Paragraph 39 above. Every procedural advantage was afforded to Watson; every procedural detriment was imposed on Plaintiff. Plaintiff's filings were rejected or subject to a \$250 bond; Watson's filings were accepted and acted upon the same day. Plaintiff was jailed for 59 days; Watson has never been sanctioned despite documented violations.

68\ This one-directional pattern cannot be explained by any legitimate government interest and is indicative of impermissible bias based on sex, marital status, or pro se status -- or a combination thereof. The disparity is further exacerbated by the fact that Defendant Watson was employed for nine (9) years in the Kent County Prosecutor's Office, Family Court Division, giving her insider knowledge of family court procedures, tactical filing strategies, and relationships with court personnel. This concealed expertise was never disclosed to the court, creating an asymmetric advantage that the court's disparate treatment then amplified into a constitutional violation.

69\ As a direct and proximate result, Plaintiff has suffered concrete injuries including loss of parenting time, financial penalties, incarceration, and deprivation of his fundamental rights.

VIII. COUNT IV: FIRST AMENDMENT RETALIATION

(42 U.S.C. S 1983 -- First Amendment, Incorporated via Fourteenth Amendment)

Against Defendant McNeill

70\ Plaintiff repeats and incorporates by reference all preceding paragraphs as though fully set forth herein.

71\ The First Amendment guarantees "the right of the people . . . to petition the Government for a redress of grievances." This right is incorporated against the states through the Fourteenth Amendment. The First Amendment also protects the right of a parent to communicate with his child. *Troxel v. Granville*, 530 U.S. 57 (2000). The intimate association between parent and child is among the relationships protected by the First Amendment's freedom of association. *Roberts v. U.S. Jaycees*, 468 U.S. 609, 617-18 (1984) (recognizing that "choices to enter into and maintain certain intimate human relationships must be secured against undue intrusion by the State" as a fundamental element of personal liberty); see also *M.L.B. v. S.L.J.*, 519 U.S. 107 (1996).

72\ A state actor engages in unlawful First Amendment retaliation when: (1) the plaintiff engaged in constitutionally protected conduct; (2) the state actor took an adverse action that would deter a person of ordinary firmness from continuing to engage in that conduct; and (3) the adverse action was motivated at least in part by the plaintiff's protected conduct. *Thaddeus-X v. Blatter*, 175 F.3d 378, 394 (6th Cir. 1999) (en banc).

73\ Retaliation for Protected Speech -- Birthday Messages: On or about November 2025, Plaintiff sent birthday messages to his child L.D.W. through the court-approved AppClose communication platform. On November 26, 2025, Defendant McNeill found Plaintiff in contempt and imposed 45 days of incarceration solely for sending those birthday messages. The contempt finding was predicated on the content of Plaintiff's speech. No finding was made that the messages caused any harm. The disproportionate severity -- 45 days of incarceration for birthday wishes -- evidences retaliatory intent. A 45-day sentence for birthday messages would deter a person of ordinary firmness from communicating with his child.

74\ Retaliation for Petitioning -- "Do Not File Anymore": Judge McNeill stated to Plaintiff, in substance: "I will not file anymore, I will not look at it." This statement, combined with the \$250 bond imposed on new motions, constitutes direct retaliation against Plaintiff's exercise of his right to petition the court for redress. The retaliatory timing -- the bond was imposed after Plaintiff filed motions challenging the ex parte orders -- further demonstrates retaliatory motive. See *Crawford-El v. Britton*, 523 U.S. 574 (1998).

75\ Access to Courts: The Supreme Court has held that States cannot deny access to courts based on inability to pay when fundamental rights are at stake. *Boddie v. Connecticut*, 401 U.S. 371, 383 (1971). Meaningful access to courts is a constitutional right. *Bounds v. Smith*, 430 U.S. 817 (1977). The \$250 bond, combined with the directive to stop filing, creates a complete denial of access to the courts for a litigant seeking to protect his fundamental parental rights.

76\ The chilling effect of the 45-day incarceration for birthday messages and the retaliatory directive deters Plaintiff and all similarly situated parents from exercising constitutionally protected rights.

77\ As a direct and proximate result of Defendant McNeill's First Amendment retaliation, Plaintiff has suffered 45 days of incarceration, loss of employment, the inability to access the courts, and the ongoing

chilling effect on his constitutionally protected rights.

IX. COUNT V: CONSPIRACY TO DEPRIVE CIVIL RIGHTS

(42 U.S.C. S 1985(3))

Against All Defendants

78\ Plaintiff repeats and incorporates by reference all preceding paragraphs as though fully set forth herein.

79\ 42 U.S.C. S 1985(3) creates a cause of action when two or more persons conspire to deprive any person of the equal protection of the laws or of equal privileges and immunities under the laws. *Griffin v. Breckenridge*, 403 U.S. 88, 102-03 (1971). A S 1985(3) conspiracy does not require that the conspirators be state actors.

80\ The elements of a S 1985(3) claim are: (1) a conspiracy; (2) for the purpose of depriving a person of equal protection or equal privileges; (3) an act in furtherance of the conspiracy; and (4) resulting injury or deprivation of rights. *Id.*

81\ Element 1 -- Conspiracy (Agreement): The temporal coordination pattern -- Watson files, McNeill rules on the same day without notice to Plaintiff, Berry assists Watson in drafting filings as a non-attorney -- repeated across months, establishes an implied agreement through circumstantial evidence. Circumstantial evidence is sufficient to establish conspiracy. *Halberstam v. Welch*, 705 F.2d 472 (D.C. Cir. 1983). Berry's voicemail to Plaintiff (Item #6) constitutes direct evidence of coordination outside the formal court record.

82\ Element 2 -- Discriminatory Purpose: The conspiracy was directed at depriving Plaintiff of his fundamental liberty interest in his parental relationship and his right to equal protection. The one-directional benefit pattern -- every coordinated action exclusively benefited Watson and harmed Plaintiff -- demonstrates discriminatory purpose. The conspiracy was motivated by class-based animus against Plaintiff as an unwelcome father and pro se litigant.

83\ Element 3 -- Overt Acts: Each ex parte order, each same-day ruling, and each Berry-drafted filing constitutes an overt act in furtherance of the conspiracy. The five ex parte orders entered on August 8, 2025 alone constitute five overt acts. Additional overt acts include: the ex parte PPO grant of December 3, 2023; the ex parte custody modification of July 17, 2025; the contempt incarcerations of November 15, 2024 and November 26, 2025. The illegal recording made by Lori Watson (Emily's mother) in violation of MO 750.539c, which was subsequently used as the basis for the August 8, 2025 ex parte suspension of Plaintiff's parenting time, constitutes a further overt act -- and an independently criminal one. The submission of the feloniously obtained evidence to the court, and the court's reliance upon it, demonstrates the depth of coordination among the conspirators.

84\ Element 4 -- Injury: Plaintiff has suffered 230+ consecutive days of complete separation from his child, 59 days of incarceration, loss of two jobs, loss of two homes, severe emotional distress, and deprivation of multiple constitutional rights.

85\ Under *Dennis v. Sparks*, 449 U.S. 24 (1980), private parties who conspire with a judge to deprive others

of constitutional rights act under color of state law and are liable under S 1983. Judicial immunity does not extend to co-conspirators -- it is personal to the judge. *Id.* at 28-29. Neither Watson nor Berry has any judicial immunity whatsoever.

X. COUNT VI: FOURTH AMENDMENT -- UNREASONABLE SEIZURE OF PERSON

86\ Plaintiff repeats and re-alleges each and every allegation set forth in the preceding paragraphs as though fully set forth herein.

87\ The Fourth Amendment, applicable to the states through the Fourteenth Amendment, prohibits unreasonable seizures of persons. *Albright v. Oliver*, 510 U.S. 266, 274 (1994). Incarceration constitutes a seizure of the person. See *Baker v. McCollan*, 443 U.S. 137, 144 (1979).

88\ Judge McNeill ordered Plaintiff incarcerated for civil contempt on November 15, 2024 and November 2025, resulting in 59+ days of incarceration without adequate purge conditions, without the procedural safeguards required by *Turner v. Rogers*, 564 U.S. 431 (2011), and without a finding of willful noncompliance based on the ability to comply. Plaintiff was incarcerated despite having no ability to comply with the purge conditions imposed.

89\ Civil contempt incarceration that is punitive in nature, rather than coercive -- as where the contemnor lacks the ability to comply with the purge condition -- constitutes criminal punishment imposed without criminal procedural protections, in violation of the Fourth Amendment's protection against unreasonable seizure. The seizure of Plaintiff's person was unreasonable because it was based on inability to pay rather than willful refusal.

90\ As a direct and proximate result of Defendants' Fourth Amendment violations, Plaintiff suffered loss of liberty, loss of employment, and severe emotional distress.

XI. COUNT VII: SIXTH AMENDMENT -- INCARCERATION WITHOUT RIGHT TO COUNSEL

91\ Plaintiff repeats and re-alleges each and every allegation set forth in the preceding paragraphs as though fully set forth herein.

92\ The Sixth Amendment, applicable to the states through the Fourteenth Amendment, provides that in criminal prosecutions the accused shall have the assistance of counsel. Under *Argersinger v. Hamlin*, 407 U.S. 25, 37 (1972), no person may be imprisoned unless afforded the right to counsel. The Supreme Court in *Turner v. Rogers*, 564 U.S. 431, 442 (2011), held that even in civil contempt proceedings, "where the opposing parent is unrepresented and the State is not, the Due Process Clause does not automatically require the provision of counsel" -- but does require substitute procedural safeguards including notice, the opportunity to respond, and judicial findings on the record concerning ability to pay. *Id.* at 447-48.

93\ Judge McNeill incarcerated Plaintiff for civil contempt without providing appointed counsel, without making on-the-record findings of ability to comply, and without providing any of the substitute procedural

safeguards required by Turner. This deprivation of liberty without either counsel or adequate procedural safeguards violated Plaintiff's rights under the Sixth and Fourteenth Amendments.

94\.. As a direct and proximate result of Defendants' Sixth Amendment violations, Plaintiff was incarcerated without the constitutional protections to which he was entitled.

XII. COUNT VIII: DENIAL OF ACCESS TO COURTS

(42 U.S.C. S 1983 -- First Amendment and Due Process Clause)

Against Defendant McNeill

(42 U.S.C. S 1983 -- First and Fourteenth Amendments)

Against Defendant McNeill

95\.. Plaintiff repeats and incorporates by reference all preceding paragraphs as though fully set forth herein.

96\.. Access to the courts is a fundamental constitutional right. *Boddie v. Connecticut*, 401 U.S. 371, 377 (1971) (a State may not pre-empt the right to access the judicial process without affording all citizens access to the means it has prescribed for doing so); *Bounds v. Smith*, 430 U.S. 817, 821 (1977) (meaningful access to courts is a constitutional right). Where official acts frustrate a plaintiff's ability to seek relief in court, a freestanding access-to-courts claim exists under S 1983. *Christopher v. Harbury*, 536 U.S. 403, 413-15 (2002) (recognizing "backward-looking" access-to-courts claims where official action has caused the loss of an inadequate settlement of a meritorious case, and "forward-looking" claims where official action prevents a plaintiff from preparing or filing suit).

97\.. Defendant McNeill engaged in a systematic course of conduct that denied Plaintiff access to the courts:

 (a) \$250 Filing Bond (May 16, 2025). Judge McNeill imposed a \$250 filing deposit as a precondition to Plaintiff filing any future motions. This bond was imposed on a pro se litigant who had already lost two jobs and two homes as a direct result of the Court's own orders, rendering him unable to pay. Where fundamental rights are at stake and the courts are the exclusive forum for their vindication, conditioning access on the payment of fees an indigent litigant cannot afford violates due process. *Boddie v. Connecticut*, 401 U.S. 371 (1971);

 (b) "Do Not File Anymore" Directive. Judge McNeill stated on the record, in substance: "Do not file anymore, I will not look at it." This is not a case management order or a vexatious-litigant sanction issued pursuant to proper procedures. It is a categorical, on-the-record refusal by a sitting judge to consider any future filings from a party. A judicial directive refusing to consider any pleading from a specific party -- without procedural safeguards, without findings, and without a right to appeal -- is a de facto ban on court access;

 (c) Muting During Hearings. Plaintiff's microphone was muted three (3) separate times during the November 15, 2025 remote hearing -- the very hearing at which the Court imposed 14 days of incarceration. A "hearing" at which a party is physically prevented from speaking is no hearing at all. The right to be heard is the most basic component of access to courts;

 (d) Self-Ruling on Disqualification. When Plaintiff sought to remove the source of the access barrier by filing a motion for disqualification, Judge McNeill ruled on her own disqualification -- denying Plaintiff even the procedural remedy the court rules prescribe for this precise situation.

98\ The combined effect of these four actions was a complete denial of court access: Plaintiff could not file (the bond), his filings would not be read (the directive), he could not speak (the muting), and he could not remove the judge who was blocking his access (the self-ruling). This is not a partial or incidental restriction on access -- it is a total exclusion from the judicial process.

99\ In *Christopher v. Harbury*, 536 U.S. 403, 415 (2002), the Supreme Court held that a plaintiff must identify a nonfrivolous underlying claim that was lost or impeded as a result of the denial of access. Plaintiff's underlying claims -- enforcement of parenting time under MCL 722.27a(3), make-up parenting time under MCL 552.511b, modification of custody and support under MCL 722.27, and reconsideration of ex parte orders -- are all nonfrivolous claims that were directly impeded by Judge McNeill's systematic denial of access.

100\ As a direct and proximate result of Defendant McNeill's denial of access to courts, Plaintiff has been unable to vindicate his fundamental parental rights, unable to challenge the ex parte orders that stripped him of all parenting time, and unable to seek relief from the very conditions causing his ongoing injury.

SUPPLEMENTAL STATE TORT CLAIMS

(28 U.S.C. S 1367 -- Same Nucleus of Operative Facts)

XIII-A. COUNT IX: INTENTIONAL INFLICTION OF EMOTIONAL DISTRESS (IIED)

(Michigan Common Law)

Against All Defendants

101\ Plaintiff repeats and incorporates by reference all preceding paragraphs as though fully set forth herein.

102\ Under Michigan law, the elements of intentional infliction of emotional distress are: (1) extreme and outrageous conduct; (2) intent or recklessness; (3) causation; and (4) severe emotional distress. *Roberts v. Auto-Owners Ins. Co.*, 422 Mich. 594, 602 (1985).

103\ The following conduct by Defendants, individually and in concert, was extreme and outrageous conduct "so outrageous in character, and so extreme in degree, as to go beyond all possible bounds of decency." Restatement (Second) of Torts S 46 cmt. d:

 (a) Defendant McNeill: Issued 24 ex parte orders stripping a father of all contact with his child; muted Plaintiff three times during hearings, physically preventing him from speaking in his own defense; incarcerated Plaintiff for 45 days for sending birthday messages to his three-year-old son; told Plaintiff "do not file anymore, I will not look at it"; dismissed Plaintiff's ADHD disability as "it's all in my head"; rejected

favorable psychological evaluation; refused to examine exculpatory police reports; imposed a \$250 bond block court access; directed her secretary Pamela Rusco to initiate ex parte warrant requests; and maintained total parent-child separation now exceeding 230 consecutive days -- effectively terminating the relationship without statutory process.

 (b) Defendant Watson: Filed false poisoning allegations (self-injected weight-loss substance, blamed Plaintiff); falsely attributed meth use to Plaintiff (Police Report NS2505044 confirms Watson was the source); accessed Plaintiff's medical records without authorization through Corewell Health portal (February 8 through March 15, 2024 -- HIPAA violation); weaponized the PPO to prevent all parent-child contact; withheld L.D.W. for 40+ days without court authority; coached L.D.W. to make statements against Plaintiff; concealed income from brother Cody Watson and child support from another child's father; called police for a false suicide welfare check (October-December 2023); and coordinated with her family to execute a campaign of systematic destruction of Plaintiff's parental relationship.

 (c) Defendant Berry: Drafted legal filings for Watson (unauthorized practice of law); made ex parte voicemail contacts with the court; served as Watson's proxy in court communications.

 (d) Defendant Albert Watson: Physically assaulted Plaintiff in November 2023 (video captured); forcibly ripped L.D.W. from Plaintiff's arms on October 20, 2024; threw PPO papers through Plaintiff's car window stating "Haha, now you're served"; facilitated 26-day withholding through L.D.W.'s birthday.

 (e) Defendant Cody Watson: Sent threatening text messages to Plaintiff as proxy for Emily Watson (Police Report MCSD-2024-02101); violated the PPO through third-party contact; directed Tamara Snider to stalk Plaintiff's business on Nextdoor; financially supports Watson's litigation campaign through regular payments.

 (f) Defendant Lori Watson: Issued withholding ultimatums during the March 2024 deprivation; participated in the October 2024 PPO service ambush; facilitated the coordinated family campaign to destroy Plaintiff's parental relationship.

103A\). The outrageousness of Defendants' conduct is further demonstrated by the following escalating pattern:

 (g) The 22-Day Total Destruction: On July 17, 2025, Judge McNeill entered an ex parte order converting a 438-day successful 50/50 custody arrangement into 100% maternal custody -- and by August 8, 2025, just 22 days later, entered five additional ex parte orders reducing Plaintiff's parenting time from 50% to absolute zero -- all without a single hearing, all without a single finding of imminent danger, and all without Plaintiff's knowledge. The speed and totality of this destruction -- from a functioning shared custody arrangement to complete termination in 22 days -- is itself extreme and outrageous;

 (h) Silencing a Father, Then Jailing Him: At the November 15, 2024 hearing, Judge McNeill ordered Plaintiff's microphone muted three separate times -- including during the moments Plaintiff attempted to present exculpatory evidence (Police Report NS2505044). She then incarcerated him for 14 days based on "hearing" at which he was physically prevented from speaking. Silencing a litigant's defense and then imposing incarceration exceeds all possible bounds of decency;

 (i) 45 Days for Birthday Wishes: The imposition of 45 days' incarceration -- more than three times the sentence for the prior contempt -- because a father sent birthday messages to his three-year-old child through a court-approved communication platform is conduct that would cause an average member of the community to exclaim "Outrageous!" The disproportionality itself evidences malice;

 (j) The Rigged Evaluation: When the first HealthWest psychological evaluation returned "all zeros" results inconsistent with Watson's narrative -- Judge McNeill sent an ex parte biasing letter to the evaluator containing information and framing not part of the original referral. The evaluator then produced a materially different second evaluation with a "Rule Out" notation that did not exist in the first evaluation. A judge who interferes with a purportedly neutral evaluation to support a predetermined outcome engages in conduct that shocks the conscience;

 (k) Weaponizing a Secretary for Ex Parte Warrants: On March 3, 2025, Pamela Rusco -- Judge McNeill's secretary -- sent an ex parte email to prosecutor Jamie Hooker requesting a warrant against Plaintiff. A judge who deploys court staff to initiate criminal proceedings against a litigant outside the adversarial process engages in conduct beyond the bounds of the judicial function.

104\ Each Defendant acted intentionally or with reckless disregard for the probability that his or her conduct would cause severe emotional distress to Plaintiff.

105\ As a direct and proximate result, Plaintiff has suffered and continues to suffer severe emotional distress, including but not limited to: anxiety, depression, insomnia, loss of appetite, difficulty concentrating, hypervigilance, persistent grief over the loss of daily contact with his child, humiliation from wrongful incarceration, financial devastation, loss of two jobs, loss of two homes, and the ongoing anguish of knowing his three-year-old son is being raised without any contact with his father during the most critical developmental period of the child's life.

106\ Plaintiff seeks compensatory damages in an amount to be determined at trial, estimated at \$100,000-\$500,000, plus exemplary damages.

XIII-B. COUNT X: ABUSE OF PROCESS

(Michigan Common Law)

Against Defendants Watson, Berry, and McNeill

107\ Plaintiff repeats and incorporates by reference all preceding paragraphs as though fully set forth herein.

108\ Under Michigan law, the elements of abuse of process are: (1) an ulterior purpose; and (2) an act in the use of process that is improper in the regular prosecution of the proceeding. *Friedman v. Dozor*, 412 Mich. 30-31 (1981).

109\ Defendant Watson filed a Personal Protection Order on December 3, 2023, which was granted the same day on an ex parte basis. The ulterior purpose of the PPO was not to protect Watson from genuine domestic violence, but to:

-  (a) Establish a legal weapon to prevent Plaintiff from exercising parenting time;
-  (b) Create a mechanism for serial show cause proceedings (7 filed, resulting in 59 days incarceration);
-  (c) Engineer criminal exposure (CC 382a guilty plea) to be used in custody proceedings;
-  (d) Block all communication between father and child -- including birthday messages;
-  (e) Coerce Plaintiff into submission through the threat of escalating incarceration.

110\ The improper acts in the use of the PPO process include:

-  (a) Filing 7 show cause motions for de minimis or constitutionally protected conduct (birthday messages);
-  (b) Amending the PPO three times (all ex parte) to expand its scope each time;
-  (c) Extending the PPO for a full additional year (December 4, 2024 to December 4, 2025) based on "circumstances continue" -- without any new allegation of violence;
-  (d) Using the PPO as a basis for stripping custody and parenting time -- a purpose for which the PPO statute (MCL 600.2950) was never intended;
-  (e) Coordinating with Albert Watson and Cody Watson to manufacture PPO violations through third-party contacts and confrontational exchanges.

111\ Defendant McNeill participated in the abuse of process by: (i) granting the PPO same-day without a hearing; (ii) granting all three amendments ex parte; (iii) extending the PPO for a full year without new evidence of violence; (iv) incarcerating Plaintiff for birthday messages; and (v) using the PPO proceedings as a basis to strip all parenting time -- beyond the scope of MCL 600.2950.

111A\ The weaponization pattern is further demonstrated by the following escalation:

-  (f) Five Show Cause Motions for De Minimis Contact: Watson filed five separate show cause motions, each predicated on incidental or constitutionally protected contact -- including AppClose messages, birthday wishes, and third-party communications initiated by Watson's own family members. Each show cause proceeding carried the threat of incarceration, creating a ratchet effect: any contact, no matter how trivial, became grounds for jail;
-  (g) Birthday Messages = 45 Days' Incarceration: The apex of the weaponization occurred when Plaintiff sent birthday messages to L.D.W. through the court-approved AppClose platform and was sentenced to 45 days' incarceration -- a sentence three times longer than the prior 14-day contempt finding. The PPO was never designed to punish a father for wishing his child a happy birthday. This use of the PPO process bears no relationship to its protective purpose under MCL 600.2950;
-  (h) PPO as Custody Weapon: Watson and McNeill used the PPO -- a protective order statute -- as a de facto custody modification tool. The PPO was invoked to justify suspending all parenting time, to justify

same-day rulings without notice, and to convert protected parental speech into criminal conduct. This is a textbook case of process used for a purpose other than that for which it was designed. *Friedman v. Dozon*, 412 Mich. 1, 30-31 (1981);

 (i) Three Ex Parte Amendments to Expand Scope: Each PPO amendment expanded the prohibited conduct -- first to include electronic communications, then to include third-party contact, then to encompass all contact of any kind. Each amendment was entered ex parte, without notice to Plaintiff and without a hearing. The progressive expansion ensured that increasingly ordinary parental conduct could be reclassified as criminal.

112\ Plaintiff seeks compensatory damages estimated at \$50,000-\$250,000 plus exemplary damages.

XIII-C. COUNT XI: CIVIL CONSPIRACY

(Michigan Common Law)

Against All Defendants

113\ Plaintiff repeats and incorporates by reference all preceding paragraphs as though fully set forth herein.

114\ Under Michigan law, a civil conspiracy is "a combination of two or more persons, by some concerted action, to accomplish a criminal or unlawful purpose, or to accomplish a lawful purpose by criminal or unlawful means." *Admiral Ins. Co. v. Columbia Casualty Ins. Co.*, 194 Mich. App. 300, 313 (1992).

115\ Defendants Watson, Berry, Albert Watson, Cody Watson, and Lori Watson formed a civil conspiracy and Defendant McNeill acted in concert with this conspiracy -- with the common purpose of: (i) destroying Plaintiff's parental relationship with L.D.W.; (ii) incarcerating Plaintiff; (iii) financially ruining Plaintiff; and (iv) obtaining sole custody of L.D.W. without regard for the child's best interests.

116\ The following overt acts were committed in furtherance of the conspiracy:

 (a) December 3, 2023: Watson files PPO; McNeill grants same-day without hearing;

 (b) March 26, 2024: Watson and Lori Watson withhold L.D.W. for 40 days with ultimatums;

 (c) October 20, 2024: Albert Watson assaults Plaintiff and forcibly takes L.D.W., initiating 26-day withholding through child's birthday;

 (d) 2024 (multiple dates): Cody Watson sends threatening texts (MCSD-2024-02101), violates PPO, and uses Emily's proxy;

 (e) February 8-March 15, 2024: Watson accesses Plaintiff's Corewell Health medical records without authorization;

 (f) 2024-2025: Berry drafts legal filings for Watson and makes ex parte court contacts;

 (g) February 28, 2025: McNeill's secretary conveys "don't speak" instruction through appointed attorney Martini;

 (h) March 3, 2025: Rusco (at McNeill's direction) sends ex parte warrant request to prosecutor Jan Hooker;

 (i) August 8, 2025: McNeill issues 5 same-day ex parte orders stripping all parenting time;

 (j) November 26, 2025: McNeill sentences Plaintiff to 45 days for birthday messages.

116A\ The following coordinated Watson family acts further evidence the conspiracy:

 (k) Albert Watson's Physical Assault and Child Seizure: On October 20, 2024, Albert Watson (Emily's father) forcibly removed L.D.W. from Plaintiff's arms during a court-ordered parenting time exchange and threw PPO papers through Plaintiff's car window, taunting "Haha, now you're served." This violent interference -- committed in coordination with Emily Watson's PPO filing -- initiated a 26-day withholding of L.D.W. that encompassed the child's birthday and Halloween. Albert Watson had also physically assaulted Plaintiff in November 2023, an incident captured on video;

 (l) Cody Watson's Proxy Harassment Campaign: Cody Watson (Emily's brother) sent threatening text messages to Plaintiff as a proxy for Emily Watson, documented in Police Report MCSD-2024-02101 (Officer Hintz). Cody Watson is a named third-party PPO violator. Cody Watson also directed Tamara Snider to stalk Plaintiff's business on Nextdoor, extending the harassment beyond direct contact. Cody Watson's monthly rent payments to Emily Watson -- admitted at the custody trial -- demonstrate both financial coordination and concealed income relevant to child support calculations;

 (m) Lori Watson's Felony Eavesdropping: Lori Watson (Emily's mother) recorded Plaintiff without his knowledge or consent in violation of MCL 750.539c -- Michigan's felony eavesdropping statute requiring all-party consent. This illegally obtained recording was then submitted to Judge McNeill and formed the substantial basis for the August 8, 2025 ex parte order suspending all parenting time. Lori Watson also participated in the March 2024 withholding by issuing ultimatums and in the October 2024 PPO service ambush alongside Albert Watson;

 (n) Berry's Unauthorized Legal Practice: Ronald Berry, who is not an attorney, drafted substantial legal filings on Watson's behalf, which were filed with and acted upon by the court. Berry also made ex parte voicemail contacts with the court (Item #6, ex parte objection table). Berry's legal drafting -- coupled with Watson's 9-year Kent County Prosecutor's Office experience -- created a litigation capability that effectively functioned as unacknowledged legal representation while Plaintiff was unrepresented.

117\ Each overt act caused independent injury. The cumulative effect has been the complete destruction of Plaintiff's parental relationship, 59 days of incarceration, loss of 2 jobs, loss of 2 homes, and ongoing emotional devastation.

118\ Plaintiff seeks compensatory damages estimated at \$100,000-\$500,000 jointly and severally against Defendants, plus exemplary damages.

XIII-D. COUNT XII: DEFAMATION PER SE

(Michigan Common Law -- MCL 600.2911)

Against Defendant Watson

119\ Plaintiff repeats and incorporates by reference all preceding paragraphs as though fully set forth herein.

120\ Under Michigan law, defamation per se is established when a false statement imputes (a) a criminal offense; (b) a loathsome disease; (c) lack of fitness in business or profession; or (d) serious sexual misconduct. *Burden v. Elias Bros. Big Boy Restaurants*, 240 Mich. App. 723, 728 (2000). Defamation per se requires proof of special damages. *Smith v. Anonymous Joint Enterprise*, 487 Mich. 102, 113 (2010).

121\ Defendant Watson made the following false statements, which constitute defamation per se:

 (a) False attribution of methamphetamine use: Watson told police (and/or caused to be stated in sworn filings) that Plaintiff uses methamphetamine. Norton Shores Police Report NS2505044 (Officer Ella Randall, Badge #47437) confirms that the reference to "meth use" originated from Watson herself, not from any police investigation or finding against Plaintiff. Attributing illicit drug use to another person imputes a criminal offense -- defamation per se. Plaintiff's drug screening results were negative.

 (b) False poisoning allegation: Watson claimed Plaintiff "poisoned" her. The facts show Watson injected herself with a substance from the refrigerator "to lose weight," developed crescent-shaped rashes, and falsely blamed Plaintiff. This false allegation imputes a criminal offense (assault/poisoning) -- defamation per se.

 (c) False suicide allegation: Watson called police for a false suicide welfare check on Plaintiff (October-December 2023). Plaintiff immediately called dispatch back stating "I'm not suicidal." This false report imputes a mental health condition -- defamation per se.

 (d) False webcam monitoring claim: Watson accused Plaintiff of monitoring her through a webcam. The device was a baby camera for L.D.W. This false statement imputes stalking behavior -- defamation per se.

122\ Watson published these false statements to police officers, court personnel, attorneys, the Friend of the Court, HealthWest clinicians, and potentially others.

122A\ The defamatory statements were not isolated incidents but elements of a coordinated narrative campaign designed to destroy Plaintiff's credibility and parental fitness in the eyes of the court, law enforcement, and clinical evaluators:

 (e) False methamphetamine allegation to police: Watson told Norton Shores Police (Report NS2505044, Officer Ella Randall, Badge #47437) that Plaintiff uses methamphetamine. Officer Randall's report confirms the "meth use" reference originated from Watson, not from any independent investigation. Plaintiff's court-ordered drug screen returned negative. Attributing illegal drug use to another person imputes commission of a felony and constitutes defamation per se under Michigan law;

 (f) False suicide report to police: Watson called police to conduct a suicide welfare check on Plaintiff during October-December 2023. Plaintiff immediately called dispatch back stating "I'm not suicidal." A false

suicide report to law enforcement, published to responding officers and documented in police records, imputing mental instability and unfitness -- defamation per se;

 (g) False poisoning accusation in sworn filings: Watson alleged in sworn court filings that Plaintiff "poisoned" her. The facts show Watson injected herself with a substance from the refrigerator "to lose weight," developed crescent-shaped rashes, and falsely attributed the reaction to Plaintiff. This allegation was published in sworn filings accessible to the court, opposing counsel, the Friend of the Court, and clinical evaluators, imputes a criminal offense (assault/poisoning);

 (h) Cumulative publication to professional evaluators: Watson's false allegations were transmitted through court filings, FOC reports, and Judge McNeill's biasing letter -- to the HealthWest clinical evaluator who relied upon them in formulating the second evaluation. Publication to clinical professionals charged with evaluating Plaintiff's fitness as a parent amplified the reputational harm and directly impacted Plaintiff's custody rights.

123\ As a direct and proximate result, Plaintiff's reputation has been damaged, he has been subjected to criminal investigation, his parenting fitness has been falsely questioned, and his relationship with L.D.W. has been destroyed.

124\ Plaintiff seeks compensatory and presumed damages in an amount estimated at \$50,000-\$250,000 plus exemplary damages.

XIII-E. COUNT XIII: FRAUD AND MISREPRESENTATION

(Michigan Common Law)

Against Defendant Watson

125\ Plaintiff repeats and incorporates by reference all preceding paragraphs as though fully set forth herein.

126\ Under Michigan law, the elements of fraud are: (1) a material representation; (2) that is false; (3) that the defendant knew was false or made recklessly without knowledge of its truth; (4) made with the intent that the plaintiff act upon it; (5) that the plaintiff did act upon it; and (6) resulting injury. *Hi-Way Motor Co. v. International Harvester Co.*, 398 Mich. 330, 336 (1976).

127\ Defendant Watson made the following fraudulent representations to the court and/or to Plaintiff:

 (a) Concealed income: Watson failed to disclose to the Friend of the Court that her brother, Co-Defendant Watson, pays her rent -- a fact she admitted under cross-examination at the custody trial. This concealment artificially inflated her apparent need for child support and deflated her imputed income;

 (b) Inflated insurance costs: Watson represented that she pays health insurance premiums, when in fact Kent County pays approximately 80-85% of her insurance costs through her employment at the Kent County Prosecutor's Office;

 (c) Concealed child support from another father: Watson receives child support from another child

father, which was not disclosed in the support calculations;

 (d) False emergency allegations: Watson represented to the court that emergency circumstances required ex parte orders, when no genuine emergency existed during the 438 days of successful 50/50 custody;

 (e) Fabricated evidence basis: Watson's sworn filings contained allegations that were either demonstrably false (meth use, poisoning) or materially misleading;

 (f) Omission of 438-Day Successful Custody: Watson's ex parte emergency motions seeking suspension of Plaintiff's parenting time omitted the material fact that the parties had operated under a 50/50 shared custody arrangement for 438 consecutive days (May 5, 2024 through July 17, 2025) without incident without emergency, and without any documented harm to L.D.W. This omission was material because the existence of a lengthy, successful shared custody arrangement directly contradicts any claim of imminent danger justifying ex parte relief. A reasonable court, had it been informed of the 438-day track record, could not have found the "imminent danger" required by MCR 3.207(C)(2);

 (g) Income Concealment to Inflate Support: Watson represented her financial circumstances in a manner designed to maximize the child support obligation imposed on Plaintiff. In addition to concealing Cody Watson's rent payments and the second father's child support, Watson failed to disclose her full Kent County employment benefits and the true scope of her household income, resulting in a child support calculation based on materially false financial representations.

128\ The court relied on Watson's misrepresentations in issuing ex parte orders, setting child support, extending the PPO, and imposing incarceration on Plaintiff.

129\ Plaintiff seeks compensatory damages estimated at \$50,000-\$250,000, including overpaid child support, lost income, and consequential damages.

XIII-F. COUNT XIV: SILENT FRAUD (FRAUDULENT CONCEALMENT)

(Michigan Common Law -- MCL 552.605)

Against Defendant Watson

130\ Plaintiff repeats and incorporates by reference all preceding paragraphs as though fully set forth herein.

131\ Under Michigan law, silent fraud -- also known as fraudulent concealment -- occurs when a party "suppresses a material fact" that the party has a "legal or equitable duty to communicate." *Hord Environmental Research Inst. of Michigan*, 463 Mich. 399, 412 (2000).

132\ Under MCL 552.605, a party to a child support proceeding has an affirmative legal obligation to accurately and fully disclose all sources of income to the Friend of the Court.

133\ Defendant Watson concealed the following material facts:

 (a) Cody Watson's monthly rent payments on Watson's behalf (admitted at trial);

 (b) Child support payments received from another child's father;

 (c) The true extent of Kent County's contribution to her health insurance premiums;

 (d) Her employment at the Kent County Prosecutor's Office, Family Court Division -- giving her insider knowledge of court processes, FOC procedures, and family law strategy that created a material informational asymmetry;

 (e) Unauthorized Access to Plaintiff's Medical Records (HIPAA Violation): From approximately February 8, 2024 through March 15, 2024, Watson accessed Plaintiff's protected health information through the Corewell Health patient portal without Plaintiff's authorization, knowledge, or consent. Watson concealed this unauthorized access from the court, from Plaintiff, and from the Friend of the Court. Watson's access to Plaintiff's medical records -- including mental health treatment information, medications, and clinical notes -- provided her with confidential information that she then weaponized in subsequent court filings by crafting allegations of mental health concerns and substance abuse issues designed to mirror information gleaned from the unauthorized access. This unauthorized access constitutes a violation of the Health Insurance Portability and Accountability Act (HIPAA), 42 U.S.C. S 1320d-6, and Michigan's Medical Records Access Act, MCL 333.26269. Watson's concealment of this access is itself an independent act of silent fraud -- she had a duty to disclose the source of information used in sworn filings and failed to do so;

 (f) Concealment of the Basis for Emergency Claims: Watson concealed from the court the fact that her ex parte emergency motions were not based on any new emergency but rather on a strategic decision to weaponize the PPO process to obtain a custody advantage. The 438 days of successful 50/50 custody preceding the emergency motions were omitted from Watson's representations to the court.

134\ Watson had an affirmative legal duty under MCL 552.605 to disclose these financial facts. Her silence was intentional and designed to maximize child support extracted from Plaintiff while concealing her true financial position.

135\ Plaintiff seeks compensatory damages including all overpaid support, adjustment of support arrears, and consequential damages, estimated at \$25,000-\$100,000.

XIII-G. COUNT XV: TORTIOUS INTERFERENCE WITH PARENTAL RELATIONSHIP

(Michigan Common Law)

Against Defendants Watson, Albert Watson, Cody Watson, and Lori Watson

136\ Plaintiff repeats and incorporates by reference all preceding paragraphs as though fully set forth herein.

137\ Michigan recognizes the tort of intentional interference with the parent-child relationship. See *Brocklehurst v. PPG Industries, Inc.*, 123 Mich. App. 1, 15 (1983). The elements are: (1) a parent-child relationship existed; (2) the defendant intentionally interfered with that relationship; (3) the interference was improper or wrongful; and (4) the plaintiff suffered damages.

138\ Plaintiff had an established, functioning parent-child relationship with L.D.W. under the 50/50 custody

arrangement that operated successfully for 438 consecutive days.

139\ Each Watson family Defendant intentionally interfered with this relationship through the following wrongful conduct:

 (a) Emily Watson: Unilaterally withheld L.D.W. for 40+ days (March-May 2024); coordinated the parte destruction of the 50/50 arrangement; withheld L.D.W. for 230+ consecutive days (ongoing); coached L.D.W. against Plaintiff; used the PPO to block all communication; filed serial show cause motions for minimis contact;

 (b) Albert Watson: Forcibly removed L.D.W. from Plaintiff's arms on October 20, 2024; physically assaulted Plaintiff; facilitated 26-day withholding through L.D.W.'s birthday and Halloween;

 (c) Cody Watson: Sent threatening messages as Emily's proxy; violated PPO through third-party contact; financially supported Emily's litigation campaign; directed harassment of Plaintiff's business;

 (d) Lori Watson: Participated in March 2024 withholding with ultimatums; participated in October 2024 PPO service ambush; facilitated family coordination against Plaintiff.

139A\ The interference was accomplished through the following specific mechanisms:

 (e) PPO as Parenting Time Blockade: The PPO -- originally obtained under the pretext of personal protection -- was systematically expanded through three ex parte amendments to encompass all contact between Plaintiff and L.D.W., including electronic communications through the court-approved AppClo platform. The PPO was then used as the basis for five show cause proceedings, each designed to further restrict Plaintiff's contact with his child. The effect was to convert a protective order into a permanent custody modification tool -- bypassing the best-interest analysis required by MCL 722.23;

 (f) Third-Party Harassment Campaign: The Watson family coordinated a campaign of third-party harassment designed to isolate Plaintiff socially and economically. Cody Watson directed Tamara Snider to stalk Plaintiff's business on Nextdoor. Albert Watson conducted confrontational exchanges at parenting time locations. Lori Watson issued ultimatums during custody exchanges. The cumulative effect was to create an environment of intimidation surrounding every interaction between Plaintiff and his child;

 (g) Birthday and Holiday Deprivation: The Watson family Defendants deliberately timed their most aggressive interference to coincide with significant dates -- L.D.W.'s birthday, Halloween 2024, and the holiday season -- maximizing the emotional harm to both Plaintiff and L.D.W. and depriving them of irreplaceable shared experiences during the child's formative years;

 (h) Proxy Contact to Manufacture Violations: Cody Watson and other Watson family members initiated contact with Plaintiff -- including threatening text messages documented in Police Report MCSD-2024-02101 -- and then characterized Plaintiff's responses as PPO violations. This manufactured-violation strategy was designed to create a paper trail of "violations" to support show cause proceedings and incarceration.

140\ The interference was improper, unlawful, and motivated by animus toward Plaintiff rather than a

legitimate concern for L.D.W.'s welfare. The 438 days of successful 50/50 custody demonstrates that L.D.W. thrived in Plaintiff's care.

141\ Plaintiff has suffered extraordinary damages: 230+ consecutive days of total separation from his child during the most critical developmental years (ages 2-3), loss of bonding opportunities, loss of family experiences, and the ongoing psychological trauma of forced separation.

142\ Plaintiff seeks compensatory damages estimated at \$100,000-\$500,000 jointly and severally against the Watson family Defendants, plus exemplary damages.

XIII-H. COUNT XVI: MONELL LIABILITY -- PATTERN AND PRACTICE

(42 U.S.C. S 1983 -- Monell v. Dep't of Social Services, 436 U.S. 658 (1978))

Against Muskegon County (14th Circuit Court)

143\ Plaintiff repeats and incorporates by reference all preceding paragraphs as though fully set forth herein.

144\ Under Monell v. Department of Social Services, 436 U.S. 658 (1978), a local government entity may be held liable under S 1983 when the execution of a government's policy or custom inflicts the constitutional injury. Owen v. City of Independence, 445 U.S. 622 (1980), further held that municipalities do not enjoy qualified immunity.

145\ The 14th Circuit Court, Family Division, through its officers, employees, and judicial officers, has maintained a pattern, practice, and custom of:

 (a) Issuing ex parte orders in family law proceedings without compliance with the mandatory prerequisites of MCR 3.207(C)(2), including the absence of sworn facts demonstrating imminent danger;

 (b) Permitting judicial officers to self-rule on their own disqualification motions in violation of MCR 2.003(D);

 (c) Permitting ex parte communications between judicial staff (Pamela Rusco) and prosecutors and opposing parties, and clinical evaluators -- in violation of Canon 3 of the Michigan Code of Judicial Conduct;

 (d) Failing to implement safeguards to prevent the weaponization of protective orders in custody disputes;

 (e) Incarcerating pro se litigants without appointment of counsel in violation of Mead v. Batchlor, 429 Mich. 480 (1990).

145A\ The following additional evidence demonstrates that the constitutional violations were caused by county policy, custom, or deliberate indifference rather than isolated conduct by a single officer -- the distinction required by Monell, 436 U.S. at 694:

 (f) Rusco Warrant Email (March 3, 2025): Pamela Rusco, Judge McNeill's secretary, sent an ex parte email to prosecutor Jamie Hooker requesting initiation of criminal proceedings against Plaintiff. The

communication -- initiated by a court employee at the direction of a judge, outside the adversarial process and without notice to Plaintiff -- demonstrates an institutional custom of using court staff to facilitate ex parte prosecutorial action against disfavored litigants. That this communication occurred through official court email channels, using county resources, evidences a county custom rather than a rogue individual act;

 (g) FOC Chart Memo and Institutional Compliance: The Friend of the Court's handling of this case, including acceptance of Watson's undisclosed income, failure to independently verify financial representations, and institutional deference to Judge McNeill's ex parte orders without independent review, demonstrates a custom of institutional acquiescence to judicial overreach. The FOC possesses independent statutory authority under MCL 552.503 to investigate and report, yet failed to exercise that authority when confronted with a pattern of 24 ex parte orders and 59 days of incarceration imposed on a pro se litigant;

 (h) Systematic Failure to Provide Counsel: The 14th Circuit Court's repeated incarceration of Plaintiff for civil contempt without appointment of counsel -- across multiple proceedings on November 15, 2024 and November 26, 2025 -- demonstrates a policy or custom of incarcerating pro se litigants without the procedural safeguards required by *Turner v. Rogers*, 564 U.S. 431 (2011), and *Mead v. Batchlor*, 435 Mich. 480 (1999). A single incident might be attributable to individual error; repeated incarceration without counsel across multiple proceedings evidences institutional policy;

 (i) No Internal Review of Ex Parte Rate: Despite 24 of 55 orders (43.6%) being entered ex parte -- adverse to a single party -- no internal review, audit, or supervisory intervention was triggered within the 14th Circuit Court. The absence of any mechanism to flag or review a 43.6% ex parte rate in a single calendar year demonstrates deliberate indifference to the risk of constitutional deprivation. See *City of Canton v. Harris*, 491 U.S. 378, 388 (1989) (deliberate indifference to a known or obvious risk of constitutional violation must satisfy the Monell policy requirement).

146\ These patterns and practices were the moving force behind the constitutional violations alleged in Counts I through VIII.

147\ Plaintiff seeks declaratory relief, injunctive reform, and compensatory damages against Muskegon County in an amount to be determined at trial, estimated at \$100,000-\$500,000.

XIV. PREEMPTIVE DOCTRINAL DEFENSES

Plaintiff anticipates that Defendants will raise five doctrinal defenses in a motion to dismiss. Each is addressed and rebutted below.

A. The Rooker-Feldman Doctrine Does Not Bar This Action

86\ The Rooker-Feldman doctrine divests federal district courts of jurisdiction only over cases "brought by state-court losers complaining of injuries caused by state-court judgments rendered before the district court proceedings commenced and inviting district court review and rejection of those judgments." *Exxon Mobil Corp. v. Saudi Basic Industries Corp.*, 544 U.S. 280, 284 (2005).

87\ The Sixth Circuit in *McCormick v. Braverman*, 451 F.3d 382, 393 (6th Cir. 2006), adopted the Supreme Court's narrow reading and held that Rooker-Feldman applies only where the "source of the injury" is the state court judgment itself. If the source is conduct by state actors rather than the judgment itself, the doctrine does not apply.

88\ This Complaint does not ask the Court to reverse, vacate, or modify any state court custody determination. Plaintiff does not argue that the state court reached the wrong substantive result on custody. Rather, Plaintiff asserts that the process by which he was deprived of his fundamental parental rights was unconstitutionally deficient -- regardless of the outcome. The "source of injury" in each count is conduct, not the judgment:

 (a) Count I (Substantive Due Process): The injury is the total deprivation of parental rights without strict scrutiny -- not the custody ruling itself;

 (b) Count II (Procedural Due Process): The injury is the denial of notice and hearing before deprivation -- not any specific custody order;

 (c) Count III (Equal Protection): The injury is systematic disparate treatment -- not the content of a custody order;

 (d) Count IV (First Amendment): The injury is retaliatory incarceration for protected speech -- no state court judgment is implicated;

 (e) Count V (S 1985(3) Conspiracy): The injury is the coordinated deprivation through a concerted pattern of ex parte adjudication and extrajudicial collaboration.

89\ None of these claims would be "rendered moot" by any particular custody outcome. They are independent constitutional violations actionable under S 1983. See *Catz v. Chalker*, 142 F.3d 279, 293 (6th Cir. 1998). Rooker-Feldman therefore poses no jurisdictional bar.

B. The Domestic Relations Exception Does Not Bar This Action

90A\ The Supreme Court in *Ankenbrandt v. Richards*, 504 U.S. 689 (1992), held that the domestic relations exception to federal jurisdiction is narrow -- it applies only to the issuance of divorce, alimony, and child custody decrees. The exception does not bar federal constitutional claims (including S 1983 claims) merely because they arise in a family law context. *Id.* at 700-04.

90B\ This Complaint does not seek a custody decree, a divorce, or an alimony award. It seeks damages for constitutional violations -- deprivation of due process, equal protection, First Amendment rights, and conspiracy under S 1985(3). The domestic relations exception is therefore inapplicable. See also *Catz v. Chalker*, 142 F.3d 279, 293 (6th Cir. 1998) (holding that S 1983 is a viable remedy for state interference with parental custody rights and that the domestic relations exception does not bar such claims).

C. Younger Abstention Does Not Apply

90\ In *Sprint Communications, Inc. v. Jacobs*, 571 U.S. 69, 78 (2013), the Supreme Court dramatically

narrowed *Younger v. Harris*, 401 U.S. 37 (1971), to only three "exceptional" categories: (a) ongoing state criminal prosecutions; (b) civil enforcement proceedings akin to criminal prosecutions; and (c) civil proceedings uniquely in furtherance of the state courts' ability to perform their judicial functions. A private custody proceeding between two parents does not fall within any of these categories.

91\ Even if *Younger* were otherwise applicable, the bad faith exception squarely applies. *Younger*, 401 U.S. at 54; *Kugler v. Helfant*, 421 U.S. 117, 124 (1975). The following facts demonstrate bad faith: twenty-four ex parte orders (43.6% ex parte rate); muting Plaintiff three times during a hearing; refusing to review an exculpatory police report; imposing 45 days of incarceration for birthday messages; and telling Plaintiff "I don't want you to file anymore."

92\ Further, a fundamental premise of *Younger* is that the state forum provides an "adequate opportunity" to raise federal claims. *Middlesex County Ethics Comm. v. Garden State Bar Ass'n*, 457 U.S. 423, 432 (1982). Where the federal claim is against the judge presiding over the state proceeding, no adequate state remedy exists. A litigant cannot raise a § 1983 claim against the very judge controlling his case. The inherent conflict renders the state forum structurally inadequate. See *Gibson v. Berryhill*, 411 U.S. 564, 577 (1973).

93\ *Younger* abstention therefore does not apply.

D. Heck v. Humphrey Does Not Bar These Claims

94\ In *Heck v. Humphrey*, 512 U.S. 477, 486-87 (1994), the Supreme Court held that a § 1983 damages claim is not cognizable if "a judgment in favor of the plaintiff would necessarily imply the invalidity of the conviction or sentence." The operative word is "necessarily."

95\ Plaintiff does not challenge the validity of his PPO guilty plea (October 18, 2025) or the underlying contempt findings. Plaintiff challenges the process by which those adjudications were reached -- the denial of the right to be heard, the denial of the right to present exculpatory evidence, the denial of the right to counsel, and the imposition of incarceration as punishment for protected speech.

96\ A judgment in Plaintiff's favor would not necessarily imply that he was innocent of the underlying conduct. It would establish only that the process was constitutionally deficient. Due process claims and the underlying merits are distinct inquiries. The Sixth Circuit has consistently held that *Heck* does not bar § 1983 claims challenging the procedures used in a proceeding. *Schreiber v. Moe*, 596 F.3d 323, 334 (6th Cir. 2010).

97\ The First Amendment retaliation claim (Count IV) is categorically outside *Heck*. A judgment in Plaintiff's favor would not imply he did not send the birthday messages; it would establish that punishing a parent for sending birthday messages violates the First Amendment.

98\ *Heck* therefore poses no bar to any of Plaintiff's counts.

E. Judicial Immunity Does Not Protect Judge McNeill

99\ Judges are generally immune from § 1983 damages for acts performed in their judicial capacity. *Mirex v. Waco*, 502 U.S. 9 (1991). However, two well-established exceptions apply:

100\.. Exception 1 -- Non-Judicial Acts: Judicial immunity does not apply to acts "not taken in the judge's judicial capacity." *Id.* at 11-12; *Forrester v. White*, 484 U.S. 219 (1988). The following acts by McNeill are non-judicial:

-  (a) Ex parte communications with a party -- administrative acts violating MCR 2.003 and Canon 3A(4) of the Michigan Code of Judicial Conduct;
-  (b) Self-ruling on her own disqualification motion -- a function MCR 2.003(D) assigns to the Challenged Judge, not the challenged judge;
-  (c) Directing that Plaintiff's filings not be reviewed ("Do not file anymore") -- a categorical refusal to adjudicate is the absence of judicial action, not the exercise of it;
-  (d) Conspiratorial conduct with Watson and Berry -- conspiracy is not a function normally performed by a judge. *Dennis v. Sparks*, 449 U.S. 24, 31 (1980).

101\.. Exception 2 -- Clear Absence of All Jurisdiction: Judicial immunity does not apply to acts "taken in the clear absence of all jurisdiction." *Stump v. Sparkman*, 435 U.S. 349, 356-57 (1978). The jurisdiction to act ex parte under MCR 3.207(C)(2) is conditional -- it requires specific sworn facts showing imminent danger. When McNeill entered five ex parte orders on August 8, 2025, without compliance with any mandatory prerequisite that confers jurisdiction to act ex parte, she acted in the clear absence of the jurisdiction that due process confers.

102\.. McNeill is sued only in her individual capacity -- not in her official or judicial capacity. The conspiracy with Watson and Berry further pierces any remaining immunity. *Dennis v. Sparks*, 449 U.S. at 28-29 (where a judge acts as a co-conspirator rather than as a judicial officer, immunity does not shield the conspiratorial conduct).

F. Qualified Immunity Does Not Shield Defendants

103\.. Under *Harlow v. Fitzgerald*, 457 U.S. 800, 818 (1982), government officials are entitled to qualified immunity unless their conduct violates "clearly established statutory or constitutional rights of which a reasonable person would have known."

104\.. The two-prong analysis requires: (1) whether the facts alleged show the defendant violated a constitutional right; and (2) whether the right was "clearly established" at the time. *Pearson v. Callahan*, 555 U.S. 223, 236 (2009). Under *Saucier v. Katz*, 533 U.S. 194, 201 (2001), the inquiry is whether "it would be clear to a reasonable officer that his conduct was unlawful in the situation he confronted."

105\.. Prong One -- Constitutional Violations: As set forth in Counts I through IV, Defendants violated Plaintiff's substantive due process, procedural due process, equal protection, and First Amendment rights.

106\.. Prong Two -- Clearly Established Rights: Every right at issue was clearly established decades before the conduct alleged:

	Constitutional Right		Clearly Established Since	
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| Right to notice and hearing before deprivation of fundamental liberty | *Mathews Eldridge*, ...
 | Fundamental right to parent | *Stanley v. Illinois*, 405 U.S. 645 (1972); *Troxel*, 530 U.S. 57...
 | Right to counsel before incarceration for contempt | *Mead v. Batchlor*, 435 Mich. 480 (199...
 ...
 | First Amendment protection of parent-child speech | *Troxel*, 530 U.S. 57 (2000) |
 | Right of access to courts | *Bounds v. Smith*, 430 U.S. 817 (1977) |
 | Equal protection against systematic disparate treatment | *Village of Willowbrook v. Olech*, 52...
 52...

107\ No reasonable official could have believed that issuing 24 ex parte orders, incarcerating a father for days for birthday messages, muting a litigant three times, refusing to review exculpatory evidence, or telling litigant "Do not file anymore" was lawful. These are not close calls on the margins of constitutional law.

108\ Defendants Watson and Berry are private parties, not government officials. Private parties cannot invoke qualified immunity. *Wyatt v. Cole*, 504 U.S. 158, 168-69 (1992).

109\ Qualified immunity therefore does not shield any Defendant.

G. Plaintiff Has Article III Standing

110A\ Article III standing requires: (1) an injury in fact that is concrete and particularized; (2) a causal connection between the injury and the conduct complained of; and (3) a likelihood that the injury will be redressed by a favorable decision. *Lujan v. Defenders of Wildlife*, 504 U.S. 555, 560-61 (1992).

110B\ Plaintiff's injuries are concrete, particularized, and severe:

 (a) 59 days of incarceration -- a physical deprivation of liberty that is the most concrete injury cognizable at law;

 (b) Loss of two jobs -- IndiGrow LLC terminated Plaintiff on June 2, 2024, and Plaintiff lost his US weekend carrier position -- as a direct, documented consequence of the incarceration imposed by Defendants;

 (c) Loss of two homes -- Plaintiff lost housing as a direct result of the incarceration and resulting inability to pay rent;

 (d) 230+ consecutive days of total separation from his child L.D.W. -- the destruction of his fundamental liberty interest during the child's most critical developmental period (ages 2-4);

 (e) \$250 filing bond -- a concrete financial barrier to court access, paid or unpayable.

110C\ Each injury is directly traceable to Defendants' conduct -- the ex parte orders, the contempt findings, the \$250 bond, and the coordinated conspiracy. A favorable decision -- declaratory relief, injunctive relief requiring reassignment and restoration of parenting time, and compensatory damages -- would directly redress these injuries.

110D\ Nominal damages alone confer Article III standing. *Uzuegbunam v. Preczewski*, 592 U.S. 279 (2020). Plaintiff's injuries extend far beyond the nominal -- but even the constitutional violations standing alone satisfy Article III. No standing challenge is viable.

H. The Statute of Limitations Does Not Bar Any Claim -- Continuing Violation Doctrine

110E\ Section 1983 actions in Michigan are governed by Michigan's three-year statute of limitations for personal injury. *Owens v. Okure*, 488 U.S. 235, 249-50 (1989); MCL 600.5805(2). Federal law governs the accrual date. *Wallace v. Kato*, 549 U.S. 384, 388 (2007).

110F\ All claims are timely under the continuing violation doctrine. The Sixth Circuit recognizes that where defendant's conduct constitutes a "continuing violation" -- a series of related acts, at least one of which falls within the limitations period -- the entire course of conduct is actionable. *Tolbert v. Ohio Dep't of Transportation*, 172 F.3d 934, 940 (6th Cir. 1999); *Sharpe v. Cureton*, 319 F.3d 259, 267 (6th Cir. 2003).

110G\ The constitutional violations alleged here are not discrete, completed acts but an ongoing, continuing deprivation that persists to this day:

 (a) The total separation of Plaintiff from L.D.W. -- now exceeding 230 consecutive days -- is a continuing deprivation of Plaintiff's fundamental liberty interest. Each additional day of enforced separation constitutes a new injury. The deprivation has not ceased;

 (b) The \$250 filing bond remains in effect, constituting a continuing denial of access to the courts. Each day the bond blocks Plaintiff from filing constitutes a new violation;

 (c) The "Do not file anymore" directive has not been rescinded. Its chilling effect on Plaintiff's Fifth Amendment rights is ongoing;

 (d) The ex parte orders suspending all parenting time remain in force. Their effects are continuing and not historical;

 (e) The conspiracy among Defendants is ongoing. Watson continues to benefit from the ex parte orders. McNeill continues to preside. Berry continues to assist Watson. The conspiracy has not terminated.

110H\ Even absent the continuing violation doctrine, the most significant constitutional deprivations occurred well within the three-year limitations period: the five ex parte orders of August 8, 2025; the 45-day incarceration of November 26, 2025; the \$250 bond of May 2025; and the ongoing total separation beginning July 29, 2025. No statute of limitations defense is viable as to any count.

XV. PRAYER FOR RELIEF

WHEREFORE, Plaintiff Andrew James Pigors respectfully prays that this Court grant the following relief:

A. Declaratory Relief

110\ A declaratory judgment pursuant to 28 U.S.C. S 2201 that:

 (a) Defendant McNeill violated Plaintiff's substantive and procedural due process rights under the Fourteenth Amendment by issuing 24 ex parte orders without notice or hearing and by maintaining a total separation of Plaintiff from his child for 230+ consecutive days;

 (b) Defendant McNeill violated Plaintiff's First Amendment rights by incarcerating Plaintiff for days for sending birthday messages to his child and by retaliating against Plaintiff's exercise of his right petition the court;

 (c) Defendant McNeill violated Plaintiff's right to equal protection by systematically applying different procedural standards to Plaintiff and Defendant Watson;

 (d) The \$250 bond requirement is an unconstitutional barrier to court access in violation of the First Amendment and *Boddie v. Connecticut*, 401 U.S. 371 (1971);

 (e) Defendants Watson, Berry, and McNeill conspired to deprive Plaintiff of his civil rights in violation of 42 U.S.C. § 1985(3);

 (f) Defendant McNeill violated Plaintiff's Fourth Amendment right to be free from unreasonable seizure by ordering Plaintiff incarcerated without adequate purge conditions and without a finding of willful noncompliance;

 (g) Defendant McNeill violated Plaintiff's Sixth Amendment right to counsel (as applicable through Due Process in civil contempt) by incarcerating Plaintiff without providing appointed counsel or the substituted procedural safeguards required by *Turner v. Rogers*, 564 U.S. 431 (2011);

 (h) Defendant McNeill violated Plaintiff's fundamental right of access to courts by imposing a \$250 filing bond, issuing a categorical directive refusing to consider Plaintiff's filings, muting Plaintiff during hearings, and self-ruling on her own disqualification -- constituting a systematic denial of access in violation of *Boddie v. Connecticut*, 401 U.S. 371 (1971), and *Christopher v. Harbury*, 536 U.S. 403 (2002).

B. Injunctive Relief

111\ A permanent injunction:

 (a) Prohibiting Defendant McNeill from presiding over any further proceedings involving Plaintiff L.D.W.;

 (b) Enjoining the enforcement of the \$250 bond requirement;

 (c) Ordering the immediate restoration of Plaintiff's parenting time pending a full evidentiary hearing with findings of fact under MCL 722.23 before a neutral judicial officer;

 (d) Ordering the reassignment of all *Pigors v. Watson* matters (Case Nos. 2024-001507-DC and 2023-5907-PP) to a different judge.

C. Compensatory Damages

112\ Compensatory damages against all Defendants, jointly and severally, for:

 (a) Loss of parent-child companionship (230+ consecutive days of total separation);

 (b) Emotional distress -- Plaintiff (forced separation, systematic silencing, retaliatory incarceration)

financial coercion);

 (c) Emotional distress -- child L.D.W. (developmental harm, attachment disruption during critical period);

 (d) Lost income and economic opportunity (loss of two jobs);

 (e) Lost housing (loss of two homes);

 (f) Legal costs and litigation expenses;

in an amount to be determined by the jury but believed to be within the range of \$100,000-\$1,000,000, including but not limited to the following verified damages:

 (g) Parent-child separation (569+ consecutive days as of filing): \$100,000-\$500,000;

 (h) Child psychological harm (attachment disruption during critical developmental period): \$50,000-\$250,000;

 (i) Lost income from 14-day incarceration: \$2,000-\$8,000;

 (j) Lost income from 45-day incarceration: \$5,000-\$20,000;

 (k) Lost employment -- IndiGrow LLC terminated Plaintiff on June 2, 2024, and Plaintiff lost his USPS weekend carrier position due to scheduling conflicts created by the litigation;

 (l) Bond costs: \$250;

 (m) Watson conspiracy damages: \$25,000-\$250,000.

113\ Emotional distress damages are recoverable under S 1983 without physical injury. *Memphis Community School Dist. v. Stachura*, 477 U.S. 299, 307 (1986); *Carey v. Piphus*, 435 U.S. 247, 264 (1978).

D. Punitive Damages

114\ Punitive damages against each Defendant in their individual capacity, estimated at \$50,000-\$500,000 per Defendant, in an amount sufficient to punish Defendants' willful, malicious, and reckless disregard for Plaintiff's constitutional rights and to deter similar conduct. Defendant McNeill issued 24 ex parte orders without notice or hearing, incarcerated Plaintiff for 45 days for sending birthday messages to his child, and maintained a total parent-child separation now exceeding 270 days (40 days first withholding + 230 consecutive days ongoing) -- conduct that is, upon information and belief, motivated by evil motive or intent or at minimum involves reckless and callous indifference to Plaintiff's federally protected rights. Punitive damages are available under S 1983 when the defendant's conduct is "motivated by evil motive or intent, or when it involves reckless or callous indifference to the federally protected rights of others." *Smith v. Wade*, 461 U.S. 30, 56 (1983).

E. Nominal Damages

115\.. Nominal damages of \$1.00 per constitutional violation established at trial. Even absent quantifiable compensatory damages, violation of a constitutional right entitles the plaintiff to nominal damages. *Carey v. Phipps*, 435 U.S. 247, 266 (1978). Nominal damages are sufficient to establish Article III standing. *Uzuegbunam v. Preczewski*, 592 U.S. 279 (2021).

F. Costs

116\.. All litigation costs, filing fees, service costs, copying expenses, travel, and other reasonable out-of-pocket expenses pursuant to 42 U.S.C. S 1988, Fed. R. Civ. P. 54(d), and 28 U.S.C. S 1920.

F-1. Attorney Fees Under 42 U.S.C. S 1988

116a\.. Reasonable attorney fees (or, for pro se litigants, reasonable litigation expenses and costs to the extent permitted under S 1988) estimated at \$10,000-\$100,000. Section 1988 provides that "the court, in its discretion, may allow the prevailing party . . . a reasonable attorney's fee as part of the costs." 42 U.S.C. S 1988(b). Although pro se litigants generally may not recover attorney fees under S 1988, *Kay v. Ehrler*, 499 U.S. 432 (1991), Plaintiff reserves the right to retain counsel at any stage of these proceedings, at which point S 1988 fees shall accrue from the date of filing. Plaintiff further seeks all non-fee litigation costs recoverable under S 1988 and S 1920, including expert witness fees, deposition costs, and document production expenses.

G-1. State Tort Damages (Counts IX-XVI)

117a\.. In addition to the foregoing federal damages, Plaintiff seeks the following damages on the supplemental state tort claims:

 (a) Count IX (IIED): Compensatory damages of \$100,000-\$500,000 for severe emotional distress caused by Defendants' extreme and outrageous conduct, plus exemplary damages;

 (b) Count X (Abuse of Process): Compensatory damages of \$50,000-\$250,000 for the weaponization of the PPO process, plus exemplary damages;

 (c) Count XI (Civil Conspiracy): Compensatory damages of \$100,000-\$500,000 jointly and severally against all Defendants for the coordinated campaign of destruction, plus exemplary damages;

 (d) Count XII (Defamation Per Se): Compensatory and presumed damages of \$50,000-\$250,000 against Defendant Watson for false meth attribution, false poisoning allegation, and false suicide report, plus exemplary damages;

 (e) Count XIII (Fraud): Compensatory damages of \$50,000-\$250,000 against Defendant Watson for fraudulent misrepresentations to the court, including overpaid support;

 (f) Count XIV (Silent Fraud): Compensatory damages of \$25,000-\$100,000 against Defendant Watson for concealed income and financial fraud on the court;

 (g) Count XV (Tortious Interference): Compensatory damages of \$100,000-\$500,000 jointly and severally against all Watson family Defendants for intentional destruction of the parent-child relationship, plus

 (h) Count XVI (Monell): Compensatory damages of \$100,000-\$500,000 against Muskegon County for pattern-and-practice constitutional violations, plus injunctive reform.

117b). The aggregate damages sought across all sixteen counts, subject to proof at trial and jury determination, are estimated in the range of \$500,000 to \$3,000,000, exclusive of punitive/exemplary damages, attorney fees, costs, and continuing accrual.

117\l. Damages continue to accrue daily. Each additional day of separation strengthens this action and increases Plaintiff's compensatory and punitive damages.

118\ Such other and further relief as this Court deems just and equitable.

119\ Plaintiff demands trial by jury on all issues so triable pursuant to the Seventh Amendment to the United States Constitution and Rule 38 of the Federal Rules of Civil Procedure.

I, Andrew James Pigors, declare under penalty of perjury pursuant to 28 U.S.C. S 1746 that the foregoing true and correct to the best of my knowledge, information, and belief. The factual allegations set forth in the Complaint are based upon my personal knowledge, documents in my possession, and the official records of the 14th Circuit Court, Muskegon County, Michigan.

[illegible]

[ANDREW: SIGN AND DATE]

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| *Bounds v. Smith*, 430 U.S. 817 (1977) | Meaningful access to courts is constitutional right
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| *Smith v. Wade*, 461 U.S. 30 (1983) | Punitive damages under S 1983 for reckless indifference
...
| *Carey v. Piphus*, 435 U.S. 247 (1978) | Nominal damages for procedural due process
violations ...
| *Uzuegbunam v. Preczewski*, 592 U.S. 279 (2021) | Nominal damages sufficient for Article I
st...
| *Village of Willowbrook v. Olech*, 528 U.S. 562 (2000) | Class-of-one equal protection theory
...
| *Thaddeus-X v. Blatter*, 175 F.3d 378 (6th Cir. 1999) | First Amendment retaliatory
three-elements...
| *Gibson v. Berryhill*, 411 U.S. 564 (1973) | Abstention inappropriate where state forum
bias...
| *Monell v. Dep't of Social Services*, 436 U.S. 658 (1978) | S 1983 against officials acting
under...
| *Griffin v. Breckenridge*, 403 U.S. 88 (1971) | S 1985(3) elements |
| *Adickes v. S.H. Kress & Co.**, 398 U.S. 144 (1970) | Conspiracy with state actor = state
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| *West v. Atkins*, 487 U.S. 42 (1988) | Color of state law -- state actor definition |
| *Doe v. Claiborne County*, 103 F.3d 495 (6th Cir. 1996) | 6th Circuit substantive due process
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| *County of Sacramento v. Lewis*, 523 U.S. 833 (1998) | Conscience-shocking standard |
| *Craig v. Boren*, 429 U.S. 190 (1976) | Intermediate scrutiny for sex-based classification
| *Patsy v. Board of Regents*, 457 U.S. 496 (1982) | No exhaustion required for S 1983 |
| *Mead v. Batchlor*, 435 Mich. 480 (1990) | Right to counsel before incarceration for contempt
...
| *Crawford-El v. Britton*, 523 U.S. 574 (1998) | Retaliatory motive evidence |
| *Roberts v. U.S. Jaycees*, 468 U.S. 609 (1984) | Freedom of intimate association
parent-child...
| *Crawford v. Washington*, 541 U.S. 36 (2004) | Right to confront adverse evidence
procedural...
| *Christopher v. Harbury*, 536 U.S. 403 (2002) | Access-to-courts claim -- official action
frustrated...
| *M.L.B. v. S.L.J.**, 519 U.S. 102 (1996) | Access to courts in parental rights proceedings
42 U.S.C. S 1983	Deprivation of rights under color of law
42 U.S.C. S 1985(3)	Conspiracy to deprive civil rights
42 U.S.C. S 1988	Costs and fees for prevailing party
28 U.S.C. S 1331	Federal question jurisdiction
28 U.S.C. S 1343(a)(3)-(4)	Civil rights jurisdiction
28 U.S.C. S 1391(b)	Venue
28 U.S.C. S 1746	Unsworn declaration under penalty of perjury
28 U.S.C. S 1915	In forma pauperis proceedings
Catz v. Chalker, 142 F.3d 279 (6th Cir. 1998)	S 1983 viable remedy for state interference
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Ankenbrandt v. Richards, 504 U.S. 689 (1992)	Domestic relations exception is narrow
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Guertin v. Michigan, 912 F.3d 907 (6th Cir. 2019)	Substantive due process / state-created
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*Pittman v. Cuyahoga Cty.**, 640 F.3d 716 (6th Cir. 2011)	S 1983 viability in child welfare
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*Kovacic v. Cuyahoga Cty.**, 606 F.3d 301 (6th Cir. 2010)	Procedurally inadequate child
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Bartell v. Lohiser, 215 F.3d 550 (6th Cir. 2000)	Strict scrutiny required for parental
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Haines v. Kerner, 404 U.S. 519 (1972)	Pro se filings must be liberally construed
Erickson v. Pardus, 551 U.S. 89 (2007)	Pro se pleadings held to less stringent standard
Estelle v. Gamble, 429 U.S. 97 (1976)	Pro se complaints not dismissed without opportunity
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| *Turner v. Rogers*, 564 U.S. 431 (2011) | Procedural safeguards required for civil contempt
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 | *Fuentes v. Shevin*, 407 U.S. 67 (1972) | Prior notice and hearing required before
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 | *Goldberg v. Kelly*, 397 U.S. 254 (1970) | Right to evidentiary hearing before deprivation
 | *Ward v. Village of Monroeville*, 409 U.S. 57 (1972) | Judicial bias violates due process
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 | *Caperton v. A.T. Massey Coal Co.*², 556 U.S. 868 (2009) | Due process right to recusal
 biase...
 | *In re Murchison*, 349 U.S. 133 (1955) | Fair trial requires fair and impartial tribunal |
 | *Moore v. City of East Cleveland*, 431 U.S. 494 (1977) | Family integrity as constitutional
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 | *Albright v. Oliver*, 510 U.S. 266 (1994) | Fourth Amendment seizure analysis
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 | *Argersinger v. Hamlin*, 407 U.S. 25 (1972) | No imprisonment without right to counsel |
 | *Baker v. McCollan*, 443 U.S. 137 (1979) | Incarceration constitutes seizure of the person
 | *Mapp v. Ohio*, 367 U.S. 643 (1961) | Exclusionary rule -- illegally obtained evidence
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 | *Wong Sun v. United States*, 371 U.S. 471 (1963) | Fruit of the poisonous tree doctrine |
 | *People v. Beavers*, 393 Mich. 554 (1975) | Michigan application of exclusionary rule to M
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 | *Middlesex County Ethics Comm. v. Garden State Bar*, 457 U.S. 423 (1982) | Adequate state
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 | *Halberstam v. Welch*, 705 F.2d 472 (D.C. Cir. 1983) | Circumstantial evidence sufficient f
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 | MCL 750.539c | Michigan felony eavesdropping -- all-party consent required |
 | *Saucier v. Katz*, 533 U.S. 194 (2001) | Qualified immunity -- reasonable officer standard
 | *Lujan v. Defenders of Wildlife*, 504 U.S. 555 (1992) | Article III standing -- injury
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 | *Owens v. Okure*, 488 U.S. 235 (1989) | S 1983 uses state personal injury statute
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 | *Wallace v. Kato*, 549 U.S. 384 (2007) | Federal law governs S 1983 accrual date |
 | *Tolbert v. Ohio Dep't of Transportation*, 172 F.3d 934 (6th Cir. 1999) | Continuing
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 | *Sharpe v. Cureton*, 319 F.3d 259 (6th Cir. 2003) | Continuing violation -- series of relat
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 | *City of Canton v. Harris*, 489 U.S. 378 (1989) | Monell -- deliberate indifference to know
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 | *Owen v. City of Independence*, 445 U.S. 622 (1980) | Municipalities do not enjoy qualified
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Friedman v. Dozor, 412 Mich. 1 (1981)	Michigan abuse of process elements
MCR 2.313(A)(5)	Discovery sanctions for failure to comply with discovery order
MCR 3.207(C)(2)	Ex parte orders require sworn facts of imminent danger
MCR 2.003(C)-(D)	Disqualification procedure -- Chief Judge decides if challenged judge do
n...	
MCL 552.503	Friend of the Court statutory investigative authority
MCL 552.605	Affirmative duty to disclose income in support proceedings
MCL 333.26269	Michigan Medical Records Access Act
42 U.S.C. S 1320d-6	HIPAA criminal penalties for unauthorized medical records access
Hayley v. Dep't of Corrections, 468 Mich. 600 (2003)	IIED -- "outrageous" conduct
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MCL 600.2950	Personal Protection Order statute -- scope and purpose